

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Certain Powered Rocker-Recliner and
Glider-Recliner Mechanisms and Seating
Units Containing Same**

Investigation No. 337-TA-_____

**ULTRA-MEK, INC. AND LEGGETT & PLATT, INC.'S COMPLAINT UNDER
SECTION 337 OF THE TARIFF ACT OF 1930, AS AMENDED**

Complainants:

Ultra-Mek, Incorporated

487 Bombay Road,
Denton, North Carolina 27239

Leggett & Platt, Incorporated

1 Leggett Rd,
Carthage, MO 64836

L&P Property Management Company

1 Leggett Rd,
Carthage, MO 64836

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L&P Property Management Co.

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Proposed Respondents

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Ltd.**

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Town, Jiangdu District, Yangzhou Province,
China

Living Style Group Ltd.

11/F, Lifung Tower, 888 Cheung Sha Wan
Road, Kowloon, Hong Kong

True Innovations & Design (USA) LLC

2052 Alton Pkwy
Irvine, CA 92606-4905, United States

Living Style (Singapore) Pte. Ltd.

3 Kallang Junction #05-02
Singapore, 339265, Singapore

Living Style (Vietnam) Ltd.

1st & 2nd Floor River Garden 170 Nguyen
Van Huong Ho Chi Minh, Vietnam 71300-0

Henglin Home Furnishings Co., Ltd.

No. 378 and 380 Jiayi Rd., Dipu Street
Huzhou, Zhejiang, 313300, China

**Nanjing Hengning Home Furnishings Co.,
Ltd.**

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Colamy, Inc.

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Aurora Maison, Inc.

6275 Joyce Drive
Arvada, CO 80403

Aerisnexus Innovations, Inc.

2220 NW 36th Street
Oklahoma City, OK 73112

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2	Claim Chart for U.S. 8,297,693 (Barcalounger / Living Style Powered Rocker-Recliner with Carya Smart 5115 Mechanism)
3	Claim Chart for U.S. 8,398,165 (Barcalounger / Living Style Powered Rocker-Recliner with Carya Smart 5115 Mechanism)
4	Claim Chart for U.S. 8,016,348 (Colamy (Henglin) Powered Glider-Recliner with Carya Smart 7115 Mechanism)
5	Claim Chart for U.S. 8,297,693 (Colamy (Henglin) Powered Glider-Recliner with Carya Smart 7115 Mechanism)
6	Claim Chart for U.S. 8,398,168 (Colamy (Henglin) Powered Glider-Recliner with Carya Smart 7115 Mechanism)
7	Claim Chart for U.S. 8,016,348 (Powered Rocker-Recliner with L&P 5151 Mechanism)
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9	Claim Chart for U.S. 8,398,165 (Powered Rocker-Recliner with L&P 5151 Mechanism)
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11	Claim Chart for U.S. 8,297,693 (Powered Glider-Recliner with L&P 5181 Mechanism)
12	Claim Chart for U.S. 8,398,168 (Powered Glider-Recliner with L&P 5181 Mechanism)
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14	Claim Chart for U.S. 8,297,693 (Powered Rocker-Recliner with Ultra-Mek 7800 Mechanism)
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29	Arts. of Incorp. of Aurora Maison Inc., Colo. Sec'y of State, Doc. No. 20241963315 (filed Sept. 13, 2024)
30	Cert. of Incorp. of AerisNexus Innovations Inc., Okla. Sec'y of State (filed Dec. 18, 2024)
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APPENDICES

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B	Certified Copy of Prosecution History of U.S. 8,297,693
C	Certified Copy of Prosecution History of U.S. 8,398,165
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E	Copy of Prosecution History of U.S. 7,997,644

I. INTRODUCTION

1. Complainants Ultra-Mek, Incorporated (“Ultra-Mek”), Leggett & Platt, Incorporated, and L&P Property Management Company (collectively, “Leggett & Platt” or “L&P”) (all Complainants collectively referred to as “Complainants”) file this complaint under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, based on the unlawful and unauthorized importation into the United States, the sale for importation into the United States, and/or sale in the United States after importation, of certain rocker-recliner and glider-recliner mechanisms and seating units (the “Accused Products”) by the Proposed Respondents Jiangsu Carya Smart Home Hardware Co., Ltd.; (“Carya Smart”), Living Style Group, Ltd.; True Innovations & Design (USA) LLC; Living Style (Singapore) Pte. Ltd.; Living Style (Vietnam) Ltd.; Henglin Home Furnishings Co. Ltd.; Nanjing Hengning Home Furnishings Co., Ltd.; Aurora Maison, Inc.; Colamy, Inc.; Zhejiang Hengjian Home Furnishing Co., Ltd.; and Aerisnexus Innovations, Inc. (collectively, “Proposed Respondents”).

2. The Accused Products directly and indirectly infringe certain claims of U.S. Patent Nos. 8,398,165 (the “’165 Patent”), 8,398,168 (the “’168 Patent”), 8,016,348 (the “’348 Patent”), and 8,297,693 (the “’693 Patent”) (collectively, the “Asserted Patents”), literally and/or under the doctrine of equivalents.

3. The Complainants are American companies founded and operating in the United States that each manufacture certain rocker-recliner and glider-recliner mechanisms that are sold to furniture manufacturers who incorporate those mechanisms into finished seating units such as chairs, loveseats, or sofas (collectively, the “Domestic Industry Products”). The Proposed Respondents are Chinese corporations and their related overseas and U.S. subsidiaries which manufacture low-cost infringing rocker and glider mechanisms and seating units incorporating

the same (the “Accused Products”) by copying the designs of L&P and Ultra-Mek that they then sell for importation into, import into, and sell after importation in, the United States. The Proposed Respondents import and sell these infringing products directly to consumers online and to furniture retailers for resale online and in stores.

4. Pursuant to Commission Rule 210.12(a)(6)(i), the Complainants state that a domestic industry as defined in 19 U.S.C. §§ 1337(a)(2) and (3) exists in the United States due to their many activities, including research, manufacture, and assembly, relating to the articles and/or technology protected by the Asserted Patents (the Domestic Industry Products), as discussed in Section VII below and in the claim charts attached as Exhibits 7-16.

5. The Asserted Claims are (independent claims underlined):

U.S. Patent No.	Asserted Claims
U.S. 8,016,348	<u>1</u> -4, 6-9
U.S. 8,297,693	<u>1</u> -7, 11, <u>12</u> -14
U.S. 8,398,165	<u>1</u> -7, <u>15</u> -18
U.S. 8,398,168	<u>1</u> -7, <u>15</u> -18

6. To remedy Proposed Respondents’ continuing and unlawful violation of Section 337, Complainants seek the following: (a) an investigation into Proposed Respondents’ violations of Section 337; (b) limited exclusion orders pursuant to 19 U.S.C. § 1337(d) against each named Proposed Respondent and its subsidiaries, predecessors, affiliates, agents, successors, and assigns, barring from entry into the United States all articles that contain infringing components or which infringe directly or indirectly, literally or under the doctrine of equivalents, at least one asserted claim of the Asserted Patents; (d) permanent cease and desist orders pursuant to 19 U.S.C. § 1337(f), prohibiting each Proposed Respondent and its

subsidiaries, predecessors, affiliates, agents, successors, and assigns from the sale for importation, importation, sale after importation, distribution, offer for sale, promotion, marketing, advertising, testing, demonstration, warehousing inventory for distribution, solicitation of sales, programming, repair, maintenance, use, transfer, and other commercial activity relating to such infringing products and (e) any such other relief as the Commission deems proper.

7. Complainants further request that the Commission impose a bond upon Proposed Respondents' importation and sales of such infringing articles during the 60-day Presidential review period pursuant to 19 U.S.C. § 1337(j) to prevent further injury to the domestic industry.

II. COMPLAINANTS

A. Ultra-Mek, Inc.

8. Complainant Ultra-Mek, Inc. ("Ultra-Mek") is a company organized under the laws of the State of North Carolina having its headquarters and principal place of business at 487 Bombay Road, Denton, North Carolina 27239. It has been a family-owned corporation since its founding in 1983 and has consistently manufactured products and components in the United States. Ultra-Mek is the owner of all rights and title to the '348 Patent and the '693 Patent. *See* Ex. 62; Ex. 63.

9. Ultra-Mek is well-known as a leading designer and manufacturer of high-quality motion furniture components. Ultra-Mek was founded in 1983 in Denton, North Carolina and has operated exclusively in the United States as a family-owned and operated company since its founding. Ultra-Mek has continued to expand its research, development, and manufacturing facilities over the years and currently employs more than 140 people at its facilities, all of which are in the United States. Throughout its history, Ultra-Mek has supported the local economy in

North Carolina and has been, and continues to be, committed to providing jobs in the United States.

10. Ultra-Mek performs all the manufacturing for all its products at its North Carolina facilities, and also sources its springs, rivets, washers, bushings, and steel from United States companies, providing further support for American manufacturing jobs.

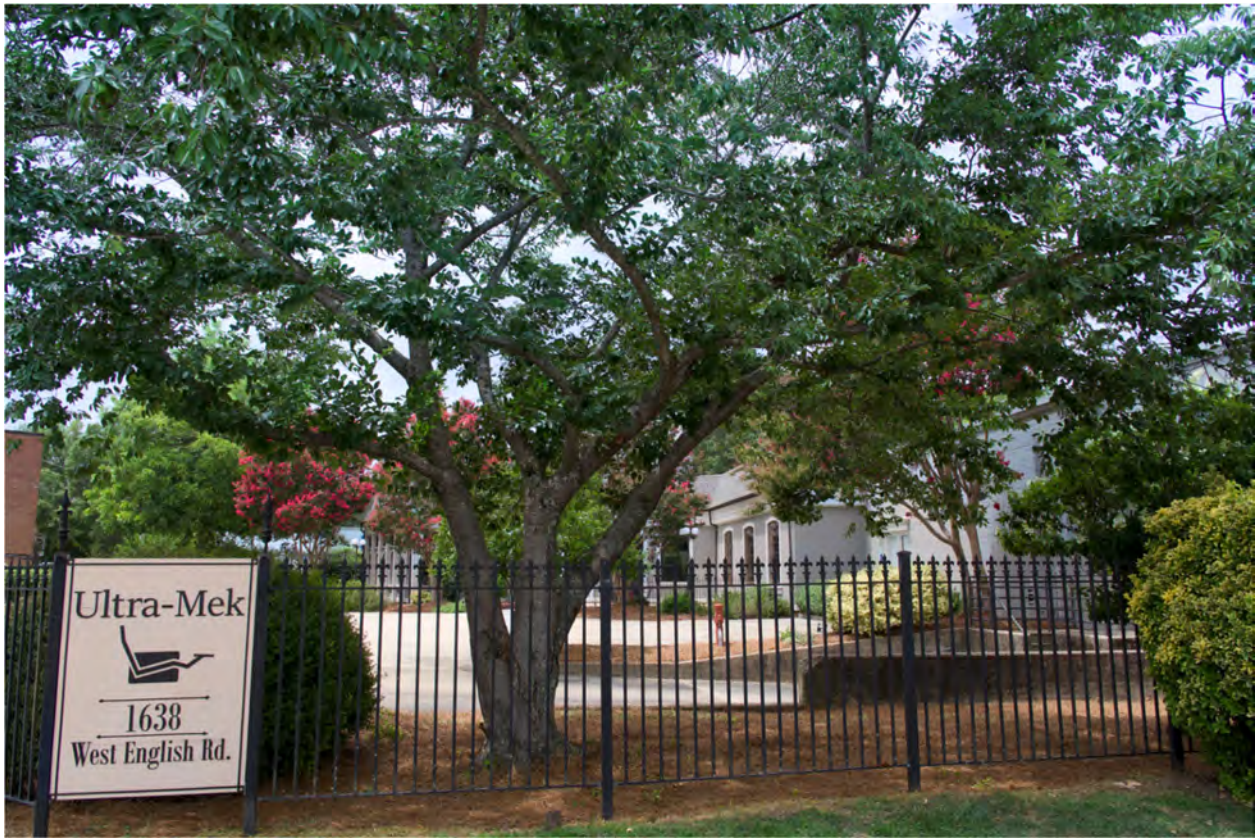
11. Ultra-Mek's operations are based out of its facilities in North Carolina. All of Ultra-Mek's warehousing, materials planning, design, fabrication, and assembly operations for all of its products occur in Ultra-Mek's facilities in Denton, North Carolina. Ultra-Mek's Domestic Industry Products are manufactured exclusively in Ultra-Mek's Denton, North Carolina facilities.







12. Ultra-Mek's other North Carolina facility is a showroom in High Point, North Carolina, where customers can view, request samples of, and discuss Ultra-Mek's product offerings, including Ultra-Mek's Domestic Industry Products.





13. Ultra-Mek has a long history of innovation and research in the field of moveable furniture components. Its first patent was issued in 1994, and it has since received more than 70+ United States Patents for its innovations.



14. Ultra-Mek sells its products, including the Ultra-Mek Domestic Industry Products, to customers in the residential, healthcare, and hospitality motion furniture industries. Ultra-Mek's residential customers include furniture manufacturers who incorporate Ultra-Mek's Domestic Industry Products into finished seating units, such as reclining chairs, for sale to furniture retailers and the public. Ultra-Mek's healthcare customers include medical furnishing companies who manufacture finished healthcare furniture such as medical-grade hospital recliners, which are then sold to healthcare providers like hospitals and assisted-living centers. Ultra-Mek's hospitality customers manufacture seating units and other motion furniture for sale to hotels, resorts, and theatres. Many of Ultra-Mek's residential, healthcare and hospitality customers manufacture their products in the United States, thus employing additional Americans.

15. Ultra-Mek's products are manufactured to high standards of safety, precision, and reliability. Ultra-Mek rigorously evaluates each of its motion furniture mechanism designs, including the Domestic Industry Products. For example, Ultra-Mek tests its residential mechanisms for 25,000 cycles to ensure long-lasting performance and quality.

16. Ultra-Mek's Domestic Industry Products include Ultra-Mek's 7800-series powered rocker-recliner mechanisms and 7900-series powered glider-recliner mechanisms, examples of which are depicted below.

**ULTRA-MEK 7800 ROCKER
MECHANISM**



**ULTRA-MEK 7900 GLIDER
MECHANISM**



B. Leggett & Platt

17. Leggett & Platt, Inc. (“L&P”) is a corporation organized under the laws of Missouri, with a principal place of business at No. 1 Leggett Road, Carthage, Missouri 64836. L&P Property Management Company is a company organized under the laws of Delaware with a principal place of business at No. 1 Leggett Road, Carthage, Missouri 64836. L&P Property Management Company is a wholly-owned subsidiary of Leggett and & Platt, Inc. L&P Property Management Company is the owner of all rights and title to the ’165 Patent and ’168 Patent. See Ex. 64 (’165 Patent Certified Patent Assignment); Ex. 65 (’168 Patent Certified Patent Assignment).

18. L&P employs thousands of individuals in the United States dedicated to the research, development, engineering, manufacturing, assembly, and support of its products, including L&P’s Domestic Industry Products. L&P operates more than 61 manufacturing facilities throughout the United States producing bedding components, flooring, textiles, automotive components, and furniture components, including the Domestic Industry Products.

19. Like Ultra-Mek, L&P has a long history of investment and involvement in the

United States. Since its inception in 1883 as a high-end bedding components manufacturer, L&P, which is headquartered in Missouri, has grown into a major developer, manufacturer, and reseller of bedding components, furniture components, automotive components and textiles. L&P's products are used across an array of industries, including automobiles, flooring and textiles, furniture, bedding, and hydraulic cylinders.

20. As of 2025, L&P employed 6,500 people in the United States. In addition to having its corporate headquarters in Carthage, Missouri, L&P also operates the majority of its manufacturing facilities in the United States. Ex. 27, at 8.



21. L&P designs and produces a broad range of furniture components for homes and offices. L&P sells its Domestic Industry Products to manufacturers of upholstered and office furniture, who incorporate the Domestic Industry Products into finished rocker-recliners and glider-recliners that are sold to furniture retailers and directly to the public.

22. At its 61 U.S. manufacturing sites L&P manufactures finished goods, as well as component materials needed in production. For example, L&P operates a steel mill in the United States with an annual output of 500,000 tons of steel. *Id.* at 3. The components and materials produced at these facilities are either used by L&P or go to supply other American companies that manufacture finished products in the United States. *Id.* L&P also performs extensive safety testing on its designs, for example testing them to make sure they function properly even after 25,000 cycles.

23. L&P manufactures many of the most important components of its Domestic Industry Products—items such as swivels, ring bases, cross-members, and seat boxes—in the United States. L&P’s manufacturing workers fabricate these components using industrial equipment including robotic welders and stamping presses. Many of the raw materials and industrial equipment used by L&P’s employees are sourced from the United States, and L&P also purchases many of the components for the Domestic Industry Products that it does not manufacture itself from U.S. companies.

24. L&P also operates several distribution centers within the United States. These distribution centers are used for the warehousing of products and components, including products and components related to L&P’s Domestic Industry Products. L&P also uses its distribution centers as a display space for products, including the Domestic Industry Products, in the United States. L&P’s Domestic Industry Products are often assembled by L&P employees in these distribution centers, and additionally by L&P’s wholesaler customers who purchase components from L&P and assemble the Domestic Industry Products within the United States.

25. L&P’s Domestic Industry Products include powered rocker-recliner and glider-recliner mechanisms and seating units incorporating the same. L&P’s Domestic Industry

Products include mechanisms sold under the Delta, Cloud Zero, BEST, and EZ-Pro brands.

Depicted below are two examples of L&P's Domestic Industry Products, the 5151 Rocker Mechanism and 5181 Glider Mechanism.

L&P 5151 ROCKER MECHANISM



L&P 5181 GLIDER MECHANISM



III. PROPOSED RESPONDENTS

A. Living Style

26. Respondent Living Style Group Ltd. is a company organized and existing under the laws of Hong Kong having its principal place of business at 11/F, Lifung Tower, 888 Cheung Sha Wan Road, Kowloon, Hong Kong. Ex. 43.

27. On information and belief, Living Style Group Ltd. sells for importation into the United States infringing seating units such as powered rocker-recliners and glider-recliners to furniture retailers through one or more of Living Style Group's subsidiaries. Ex. 43; Ex. 58C.

28. Respondent Living Style (Singapore) Pte. Ltd. is a company organized and existing under the laws of Singapore, having its principal place of business at 3 Kallang Junction #05-02 Singapore, 339265. Ex. 42. On information and belief, Living Style (Singapore) Pte. Ltd. is a subsidiary of Living Style Group Ltd. Ex. 42.

29. On information and belief, Living Style (Singapore) Pte. Ltd. sells for importation into the United States infringing seating units such as powered rocker-recliners and glider-

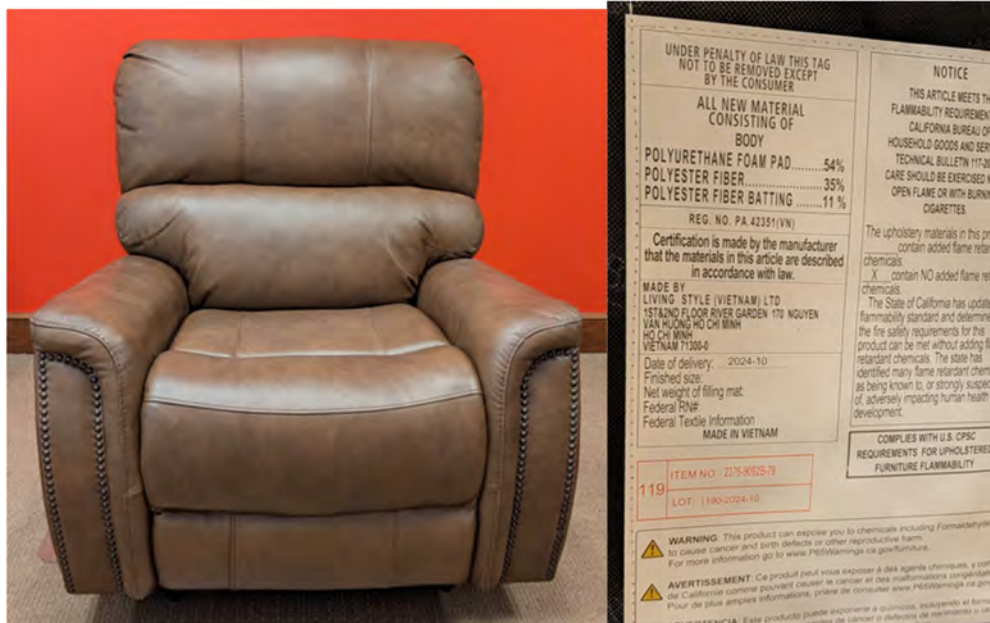
recliners to furniture retailers for subsequent resale to consumers. Ex. 17; Ex. 58C.

30. Respondent True Innovations & Design (USA) LLC (“True Innovations”) is a company organized and existing under the laws of the state of Delaware, having its principal place of business at 2052 Alton Pkwy Irvine, CA 92606-4905, United States. Ex. 44. On information and belief, True Innovations is a subsidiary of Living Style Group Ltd. Ex. 70.

31. On information and belief, True Innovations imports into the United States and/or sells in the United States after importation infringing seating units such as powered rocker-recliners and glider-recliners to furniture retailers for subsequent resale to consumers. Ex. 17.

32. Respondent Living Style (Vietnam) Ltd. is a company organized and existing under the laws of Vietnam, having its principal place of business at 1st & 2nd Floor River Garden 170 Nguyen, Van Huong Ho Chi Minh, Vietnam 71300-0. Ex. 34. On information and belief, Living Style (Vietnam) Ltd. is a subsidiary of Living Style Group Ltd. Ex. 34.

33. On information and belief, Living Style (Vietnam) Ltd. manufactures infringing seating units such as powered rocker-recliners and glider-recliners that it then sells to Living Style (Singapore) Pte. Ltd. and/or True Innovations for importation into the United States and/or sale in the United States after importation. Ex. 48; Ex. 17; Ex. 25C ¶¶ 4, 6.



2021-08-08	LIVING STYLE SINGAPORE PTE LTD 1 KALLANG JUNCTION, #05-01 SINGAPORE 339263 SINGAPORE 339263 phone - Email -	TRUE INNOVATIONS DESIGN USA LLC 2206 SOUTH GREEN STREET, TUPELO, MS 38804 TUPELO 38804 phone - Email -	PO# SP007 UE1 POWER LEATHER SWIVEL GLIDER RECLINER WITH ADJUSTABLE HEADREST (BARCALOUNGER) LEATHER DUAL POWER RECLINING LOVESEAT WITH CONSOLE (BARCALOUNGER) CXDU1160318 001 LEATHER DUAL POWER DOUBLE RECLINING SOFA (BARCALOUNGER) HS CODE: 9401.61
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34. Collectively, Living Style Group Ltd., Living Style (Vietnam) Ltd., Living Style (Singapore) Pte. Ltd., and True Innovations are referred to as “Living Style” herein.

B. The Henglin Respondents

35. Respondent Henglin Home Furnishings Co. Ltd. (“Henglin”) is a company organized and existing under the laws of China, having its principal place of business at No. 378 and 380 Jiaxi Rd., Dipu Street, Huzhou, Zhejiang, 313300, China. Ex. 41. On information and belief, Henglin changed its corporate name from Zhejiang Henglin Chair Industry Co. Ltd. on or around July 12, 2019. Ex. 39.

36. On information and belief, Henglin manufactures infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand and/or model number 60399 and sells them for importation into the United States. Ex. 52.



37. Henglin has also admitted in its 2024 semi-annual report that its “[m]ajor product lines under brands like Sweet Furniture and **Colamy** include ergonomic chairs, height-adjustable desks, storage cabinets, and functional sofas.” Ex. 36 (emphasis added).

38. On information and belief, Respondent Zhejiang Hengjian Home Furnishing Co. Ltd. is a company organized and existing under the laws of China, having its principal place of business at North Building 31 8 Baishi Lane, Gongshu District, Hangzhou, Zhejiang Hangzhou,

China. Ex. 35. On information and belief, Zhejiang Hengjian Home Furnishing Co. Ltd. is a subsidiary of Henglin. Ex. 38.

39. On information and belief, Zhejiang Hengjian Home Furnishing Co. Ltd. sells infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand to furniture retailers for importation into the United States. Ex. 19.

10	2025-05-13	ZHEJIANG HENGJIAN HOME FURNISHING C ROOM 1108,SOUTH BUILDING,318 BAISH HANGZHOU ZJ CHINATE 86622865 phone - Email -	AERISNEXUS INNOVATIONS INC 2220 NW 36TH ST OKLAHOMA CITY OK UNITED STATESTE 7661299 phone - Email -	GLIDER RECLINER NURSERY CHAIR ACCENT CHAIR	OOLU21572 11550	HAI-WIND WORLDWIDE INC 923 E. VALLEY BLVD., UNIT 201 SAN GABRIEL CA UNITED STATES phone - Email -	401.0	1703 Savannah, Georgia

40. On information and belief, Respondent Nanjing Hengning Home Furnishings Co., Ltd. (“Nanjing”) is a company organized and existing under the laws of China, having its principal place of business at Room 206, Building B, Shimao Chengpin, Yuhuatai District, Nanjing. Ex. 28. Nanjing is a subsidiary of Henglin. Ex. 28.

41. On information and belief, Nanjing imports into the United States and/or sells in the United States after importation infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand to consumers. For example, Nanjing is listed as the seller / importer of record on a major e-commerce online retail website where Nanjing sells infringing COLAMY branded products bearing model number 60399 using the product description “COLAMY Swivel Recliner Glider Rocking Nursery Chair, Power Recliner Rocking Chair for Living Room, Glider Recliner Nursery Chair for Bedroom, Accent Armchair with Built-in Charging Ports, Chocolate” in the United States.

42. Nanjing owns the COLAMY U.S. trademark under which infringing products are sold in the United States after importation. See Ex. 26; Ex. 53.



43. Respondent Colamy, Inc. is a company organized and existing under the laws of California, having its principal place of business at 10985 Oleander Avenue, Fontana, CA 92337. Ex. 32; Ex. 33. On information and belief, Colamy, Inc. is a subsidiary of Henglin. Ex. 40.

Henglin Home Furnishings Co.,Ltd acknowledges their consent for the following contact located in the United States to act as their agent for service of process for the equipment for which authorization is sought (FCC ID: **2BBYO-6100**):

Name and company of U.S. agent:	COLAMY INC
Physical U.S. address of agent:	10985 OLEANDER AVENUE FONTANA, CA 92337
FRN of U.S. agent:	0035548023
Email address of U.S. agent:	FCC@sky-linetech.com

COLAMY INC acknowledges their obligation to accept service of process on behalf of **Henglin Home Furnishings Co.,Ltd**.

44. Henglin's website listed COLAMY's business address in California (10985 Oleander Avenue) as a Henglin USA Warehouse. Ex. 37.

Henglin USA Warehouse

Fontana, CA - 510,000 sq. ft.
10985 Oleander Ave., Suite 100
Fontana, CA 92337
Shipping and receiving (909) 491-0311

Atlanta, GA - 350,000 sq. ft.
4131 South Meadow Parkway West
Ste# 100 East Point, GA 30349
Shipping and receiving (909) 491-0311

45. On information and belief, Colamy, Inc. imports into the United States and/or sells in the United States after importation infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand through its website, colamyhome.com; other online retailers and e-commerce sites; and to furniture retailers for subsequent resale. Ex. 22.

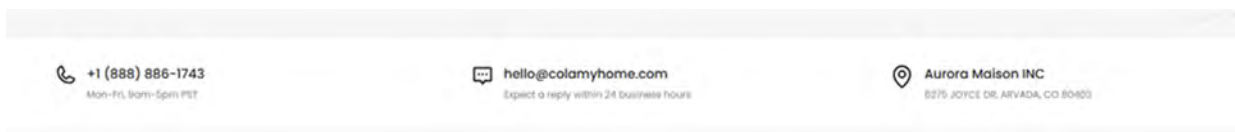
The screenshot displays the Colamy website's product page for a "COLAMY PU Leather 270° Power Swivel Glider Recliner Chair with USB Port & Phone Holder". The page features a large image of the brown leather recliner, a star rating of 4.5 from 10 reviews, and a price of \$499.99 USD. Key selling points include shipping from U.S. warehouses, 4-6 day door-to-door delivery, a 10% off code (C10), and a 30-day money-back guarantee. The color selection is set to Brown, and the quantity is 1. Below the main image are three smaller thumbnails showing different views of the chair. The page also includes a navigation bar with categories like Office Room, Dining Room, Living Room, and Gaming Room, and a footer with payment options (Visa, Mastercard, American Express, Discover, PayPal) and a delivery date range of Wednesday, April 24th to Friday, April 26th.

46. Respondent Aurora Maison, Inc., is a company organized and existing under the

laws of Colorado, having its principal place of business at 6275 Joyce Dr., Arvada, CO, 80403.

Ex. 29. On information and belief, Aurora Maison, Inc. is a subsidiary of Henglin. Ex. 38.

47. On information and belief, Aurora Maison, Inc. maintains the website colamyhome.com through which it sells infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand which have been imported into the United States. See www.colamyhome.com (listing Aurora Maison Inc. at bottom of page in contact information).



48. In addition, COLAMY’s EU website (<https://colamyhome.eu/pages/about-colamy>) lists Aurora Maison and COLAMY as having the same regional office. Ex. 71.



49. Respondent Aerisnexus Innovations, Inc., is a company organized and existing under the laws of Oklahoma, having its principal place of business at 2220 NW 36th St.

Oklahoma City, OK 73112. Ex. 30; Ex. 31. On information and belief, Aerisnexus Innovations,

Inc. is a subsidiary of Henglin.

50. On information and belief, Aerisnexus Innovations, Inc. imports into the United States and/or sells in the United States after importation infringing seating units such as powered rocker-recliners and glider-recliners bearing the “COLAMY” brand to furniture retailers for subsequent resale to consumers. Ex. 19.

10	2025-05-13	ZHEJIANG HENGJIAN HOME FURNISHING C ROOM 1108,SOUTH BUILDING,318 BAISH HANGZHOU ZJ CHINATE 86622865 phone - Email -	AERISNEXUS INNOVATIONS INC 2220 NW 36TH ST OKLAHOMA CITY OK UNITED STATESTE 7661299 phone - Email -	GLIDER RECLINER NURSERY CHAIR ACCENT CHAIR	OOLU21572 11550	HAI-WIND WORLDWIDE INC 923 E. VALLEY BLVD., UNIT 201 SAN GABRIEL CA UNITED STATES phone - Email -	1703 Savannah, Georgia
							401.0

C. Carya Smart

51. Respondent Jiangsu Carya Smart Home Hardware Co., Ltd. is a company organized and existing under the laws of China, having its principal place of business at No. 2 Jinchuan Rd., Industry Zone, Daqiao Town, Jiangdu District, Yangzhou Province, China. Ex. 72.

52. Carya Smart is “located in the Daqiao Industrial Park, Jiangdu District, Yangzhou City of Jiangsu Province” and “has an annual capability of producing multi-million units of recliner mechanisms.” Ex. 73. Carya Smart manufactures and sells for importation into the United States infringing furniture mechanisms including the Carya Smart 7115 and 5115 mechanisms for recliners. Carya Smart’s website¹ states that it is “specialized in the R&D, production and distribution of recliner mechanisms and actuators as a total solution provider.”

53. On information and belief, Carya Smart manufactures and sells infringing rocker-recliner and glider-recliner mechanisms (such as the Carya Smart 5115 rocker mechanism and 7115 glider mechanism) to Living Style and Henglin for importation to the United States in

¹ <http://en.jszcsmart.com/item.php?id=127> (last visited July 17, 2026).

finished infringing powered rocker-recliners and glider-recliners such as those bearing the “Barcalounger” and/or “COLAMY” brands. Ex. 25C ¶¶ 4-6. For example, Carya Smart labels their mechanisms in English. Exs. 49, 50.



54. Carya Smart provides power cables with their mechanisms that are adapted for use in United States electrical outlets. Ex. 57.



55. The mechanisms Carya Smart manufactures and sells for importation into the United States include linear actuators with motors whose labels state that they conform to UL

(Underwriters Laboratories) standards, which are U.S. product safety standards. Ex. 74; Ex. 75;
Ex. 50.





56. Complainants also notified Carya Smart of its infringement and, in response, Carya Smart did not deny that it was selling its mechanisms to manufacturers, including Zhejiang Henglin Chair Industry Co., Ltd., for importation into the United States. Ex. 59C; Exs. 60, 61.

IV. THE PRODUCTS AT ISSUE

A. The Products at Issue

57. Pursuant to Commission Rules 210.10(b)(1) and 210.12(a)(12), in plain English, the categories of products accused are powered glider-recliner mechanisms; powered rocker-recliner mechanisms; and finished seating units incorporating those mechanisms.²

² All non-technical descriptions of the inventions herein are presented to give a general background of those inventions. Such statements are not intended to be used, nor should they be used, for purposes of patent claim interpretation. Complainants present these statements subject to, and without waiver of, their right to argue that claim terms should be construed in a particular

Continued on the next page

58. Ultra-Mek and L&P both design, manufacture, and sell motion furniture mechanisms (including the Domestic Industry Products) to furniture manufacturers that incorporate those mechanisms into finished products by adding wooden framing, cushioning, springs, and upholstery. L&P also assembles and sells its Domestic Industry Products as partially finished assemblies that include items such as seat boxes and framing to furniture manufacturers that incorporate these assemblies into finished seating units.

B. “Accused Mechanisms” and “Accused Seating Units”

59. The “Accused Rocker Mechanisms” are powered rocker-recliner mechanisms manufactured and/or sold for importation into the United States by Carya Smart, including but not limited to the Carya Smart 5115 powered-rocker mechanism, and all other Carya Smart powered rocker-recliner mechanisms.

60. The “Accused Glider Mechanisms” are Carya Smart powered glider-recliner mechanisms, including but not limited to the Carya Smart 7115 powered-glider mechanism, and all other powered glider-recliner mechanisms manufactured by Carya Smart (collectively, the Accused Rocker Mechanisms and Accused Glider Mechanisms are referred to as the “Accused Mechanisms”).

61. The Accused Mechanisms are incorporated into the Accused Seating Units. The Accused Seating Units and Accused Mechanisms collectively are the Accused Products.

62. Below and left is a picture of the Accused Carya Smart 5115 powered-rocker mechanism, and an Accused Seating Unit is shown on the right.

way, as contemplated by claim interpretation jurisprudence and the relevant evidence.



63. The Accused Rocker Mechanism provides automated, powered recline for an Accused Seating Unit between an upright / closed position, an intermediate TV / extended position, and a (fully) reclined position. Below are images of an Accused Rocker Mechanism and an Accused Seating Unit in each of the three positions.

UPRIGHT / CLOSED



INTERMEDIATE TV / EXTENDED



(FULLY) RECLINED



**UPRIGHT /
CLOSED**



**INTERMEDIATE TV /
EXTENDED POSITION**



(FULLY) RECLINED



64. Below and left is a picture of an Accused Carya Smart 7115 powered-glider mechanism, and an Accused Seating Unit containing such a mechanism is shown on the right.

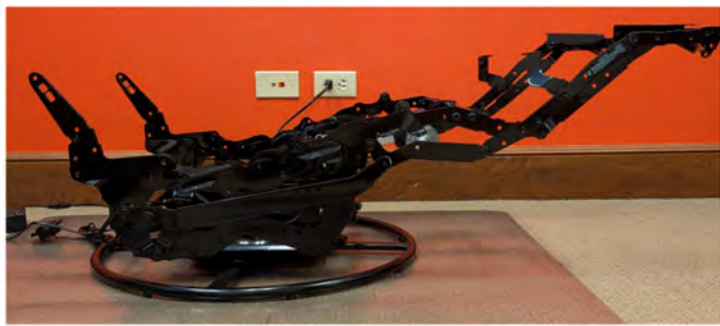


65. The Accused Glider Mechanism provides automated, powered recline for an Accused Seating Unit between an upright / closed position, an intermediate TV / extended position, and a (fully) reclined position. Below are images of an Accused Glider Mechanism and an Accused Seating Unit in each of the three positions.

UPRIGHT / CLOSED



INTERMEDIATE TV / EXTENDED



(FULLY) RECLINED



**UPRIGHT /
CLOSED**



**INTERMEDIATE TV /
EXTENDED**



(FULLY) RECLINED



V. THE TECHNOLOGY AT ISSUE & ASSERTED PATENTS

A. Description of the Technology at Issue

66. The Asserted Patents generally describe and claim powered rocker-recliner and powered glider-recliner mechanisms and seating units. The seating units of the Asserted Patents all share similar basic components, such as a base, an extendable footrest (*e.g.*, an ottoman), a seat, and a backrest. Figures 1 and 2 of the '165 Patent and Figure 1 of the '348 Patent are shown below for reference.

**'165 Patent
Figures 1 & 2**

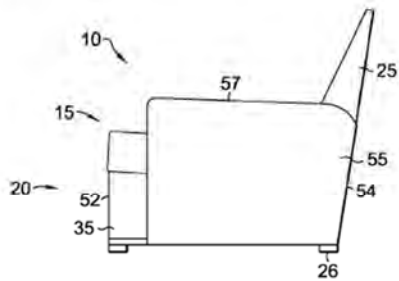


FIG. 1.

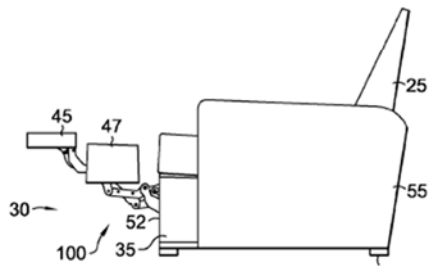


FIG. 2.

**'348 Patent
Figures 1 & 2**

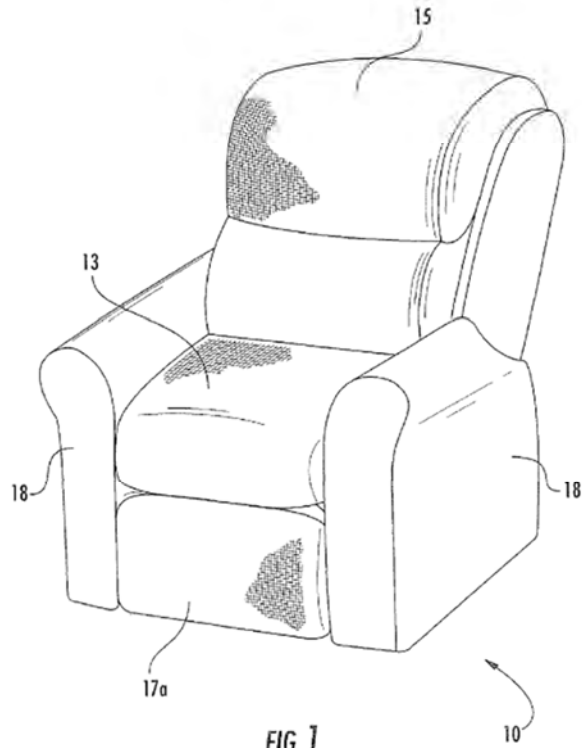
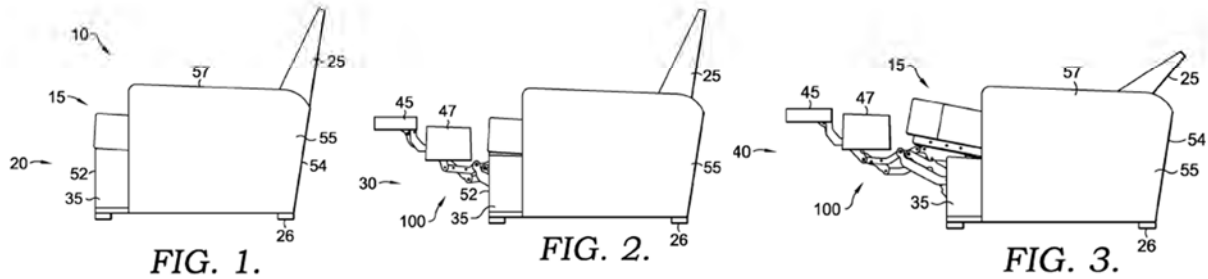


FIG. 1

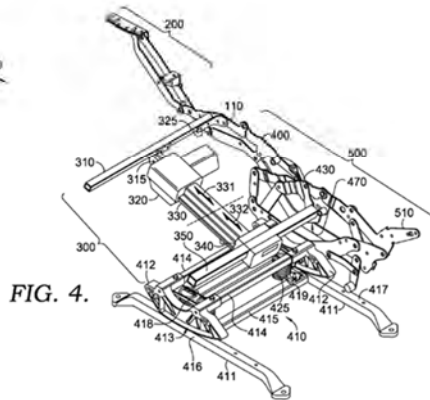
67. The seating units described in the Asserted Patents are capable of rocking or gliding, and they are also capable of reclining between three positions: an upright or closed position; an intermediate TV or extended position; and a (fully) reclined position. Those positions are depicted by way of example in Figures 1, 2, and 3 of the '165 Patent.

**'165 Patent
Figures 1, 2, 3**

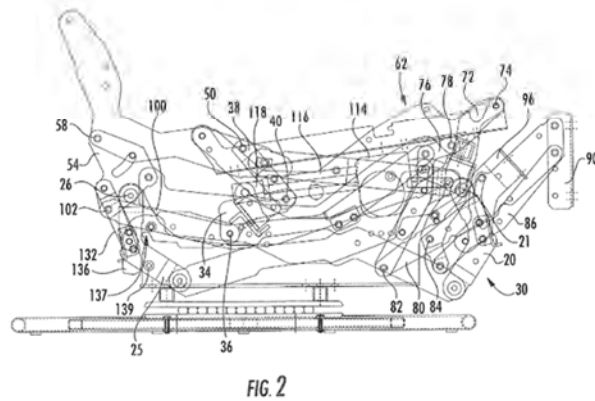


68. These seating units are able to rock / glide and recline because of an internal linkage mechanism, examples of which are shown below.

**'165 Patent
Figure 4**



**'348 Patent
Figure 2**



69. The linkage mechanisms described in the Asserted Patents serve as a foundation for the other parts of the seating unit (*e.g.*, the seat, backrest, and ottoman), and include components that allow the seating unit to rock (*e.g.*, rocker cams, springs, etc.) or glide (*e.g.*, glide brackets, glide links, etc.). The Asserted Patents also explain that the linkage mechanisms include a linear actuator that automatically moves the seating unit between the three positions described above, and describe various types of linear actuators, such as linear actuators that use

an extendable rod or a motor activator block attached to a track.

B. The '348 Patent

1. Non-Technical Description

70. U.S. Patent No. 8,016,348 (the "'348 Patent"), entitled "Reciprocating Seating Unit With Power Actuator," issued on September 13, 2011 to inventors D. Stephen Hoffman and Marcus L. Murphy. The '348 Patent issued from U.S. Patent App. Ser. No. 12/508,901 ("the '901 Application"), filed on July 24, 2009. The '901 Application claims priority to United States Patent App. Ser. No. 12/276,567, filed on November 24, 2008. A certified copy of the '348 Patent is included in Exhibit 66. The '348 Patent expires on June 19, 2029.

71. Complainants have filed with this complaint a certified copy of the prosecution history of the '348 Patent as Appendix A. Complainants have filed with this complaint a copy of the prosecution history for U.S. Patent No. 7,997,644 (the priority application of the '348 Patent) as Appendix E.³

72. The inventors assigned their rights in the '901 Application leading to the '348 Patent to Ultra-Mek, Inc. on August 28, 2009. A certified copy of this assignment is attached as Exhibit 62. The assignment was recorded at the U.S. Patent and Trademark Office on September 1, 2009. *See* Ex. 62 at 2-5 (Reel 23176/170).

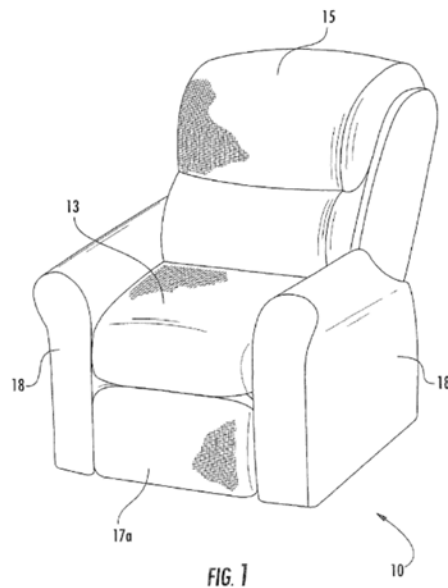
73. The '348 Patent generally relates to reclining seating units, often referred to as recliners. The '348 Patent describes and claims recliners that (a) reciprocate (*e.g.*, rock or glide)

³ As modified by International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020). Pursuant to International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020), the Commission has waived the requirements to file multiple paper copies and "the Commission has approved the temporary amendment of Rule 410.4(f)(2), Rule 210.75, Rule 210.76, and Rule 210.79 to permit parties to file section 337 complaints, exhibits, attachments, and appendices electronically."

and (b) move between certain reclining positions under the power of an actuating unit attached to a mechanism in the recliner. The inventions involve particular configurations of components, including mechanisms enabling the chair to recline as desired, power-actuating units, linkages, locking mechanisms, and other components that collectively make up a seating unit.

74. According to the '348 Patent, the claimed seating unit generally includes a base that contacts the floor and supports the seating unit; a seat where the occupant sits; a backrest that supports the occupant's back; and an extendable footrest that supports the occupant's legs. The seating unit also includes a mechanism that comprises a plurality of pivotally interconnected links which allow the seating unit to rock or glide (*i.e.*, "reciprocate") and move between upright, TV, and fully reclined positions. The mechanism also contains a linear actuator that moves the mechanism (and therefore, the seating unit), from one position to another.

75. Figure 1 of the '348 Patent shows a chair in accordance with the invention.



76. The rest of the figures show examples of the configurations of mechanisms, actuating units, linkages, etc., that are inside the chair of Figure 1. For example, Figures 2, 3,

and 4 depict the internal reclining mechanism in a schematic, side section view. Figure 2 shows the mechanism when the seating unit is in a fully upright position. See '348 patent, Fig. 2; see also '348 patent, 3:9-10.

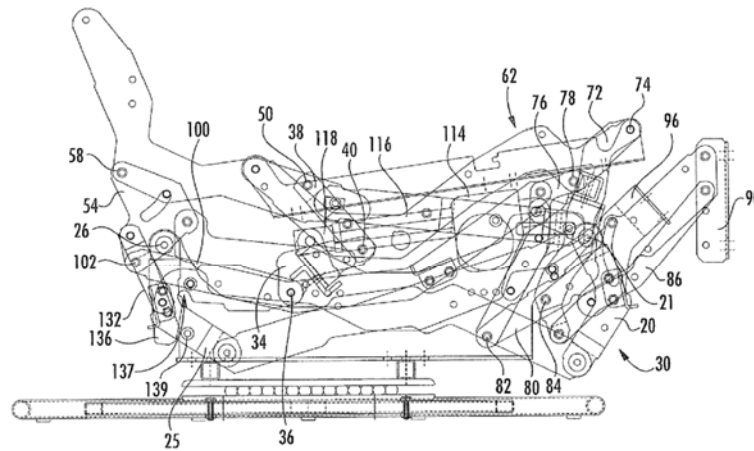


FIG. 2

77. Figure 3 depicts the internal mechanism of the seating unit when the chair is in an intermediate “TV” position. See '348 patent, Fig. 3; see also '348 patent, 3:14-15.

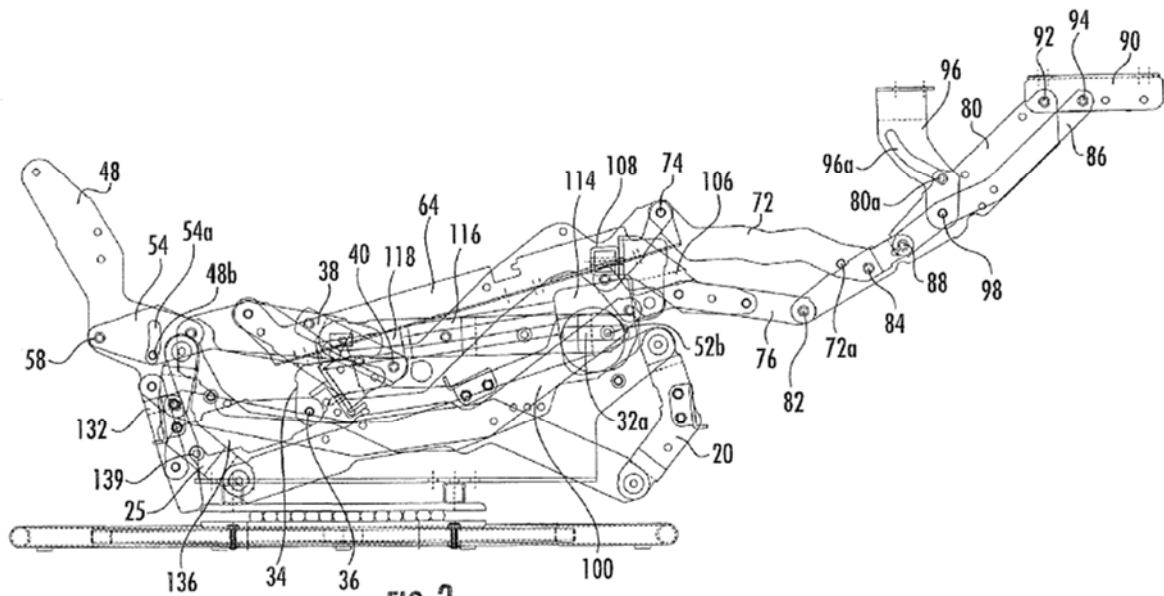
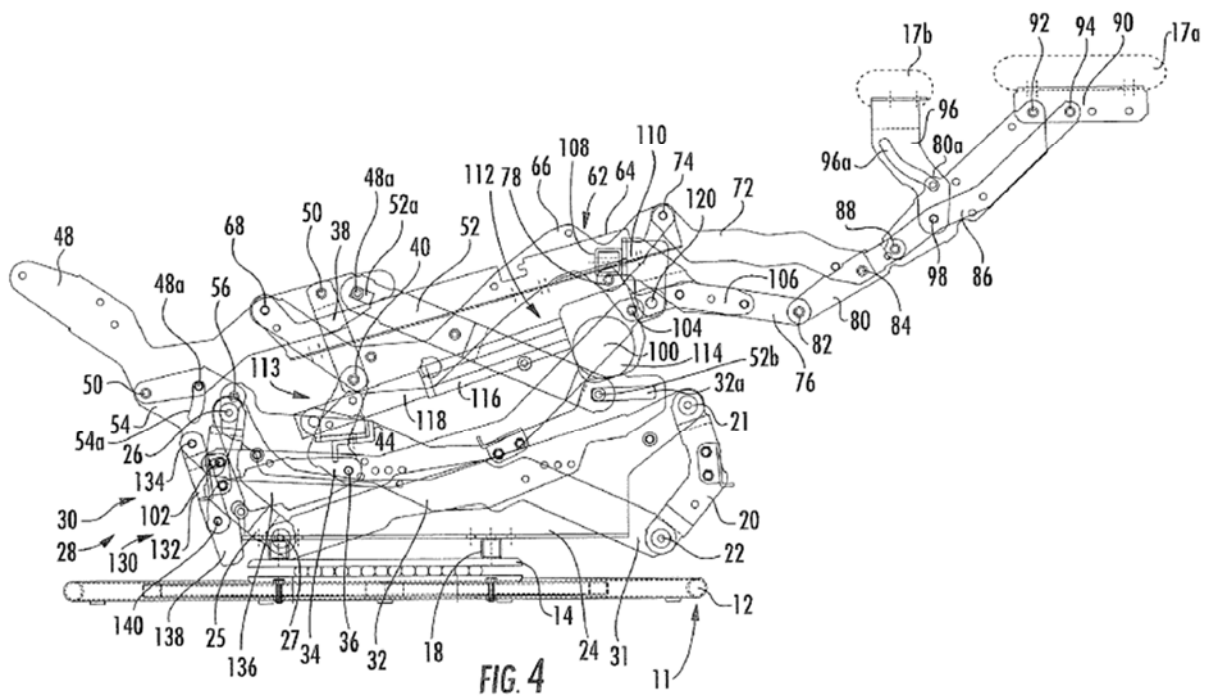


FIG. 3

78. Figure 4 shows the seating unit mechanism when the chair is in a fully reclined position. See '348 patent, Fig. 4; see also 3:19-20.



79. The '348 Patent describes these examples in detail with references to the components that comprise the claimed invention.

2. Foreign Counterparts

80. There are no foreign patents or foreign patent applications pending, filed, abandoned, withdrawn, or rejected related to the '348 Patent.

3. Licenses

81. On November 5, 2012, Ultra-Mek Inc. entered into a license agreement to license the '348 Patent to Leggett & Platt, Inc. A copy of the license agreement between Ultra-Mek Inc. and Leggett & Platt Inc. is shown in Exhibit 89C.

82. Ultra-Mek Inc. is not aware of any third-party entities licensed under the '348 Patent or third-party entities that have received from Ultra-Mek Inc. a covenant not to assert with respect to the '348 Patent.

C. The '693 Patent

1. Non-Technical Description

83. U.S. Patent No. 8,297,693 (the "'693 Patent"), entitled "Reciprocating Seating Unit With Power Actuator," issued on October 30, 2012, to inventors D. Stephen Hoffman and Marcus L. Murphy. The '693 Patent issued from U.S. Patent App. Ser. No. 13/228,746 ("the '746 Application"), filed on September 9, 2011. The '746 Application claims priority to United States Patent App. Ser. No. 12/508,901, filed on July 24, 2009, which claims priority to U.S. Patent App. Ser. No. 12/276,567, filed on November 24, 2008. A certified copy of the '693 Patent is included in Exhibit 67. The '693 Patent expires on November 24, 2028.

84. Complainants have filed with this complaint a certified copy of the prosecution history of the '693 Patent as Appendix B. Complainants have filed with this complaint a copy of the prosecution history for U.S. Patent No. 7,997,644 (the priority application of the '693 Patent) as Appendix E.⁴

85. The inventors assigned their rights in the '746 Application leading to the '693 Patent to Ultra-Mek, Inc. on August 28, 2009. A certified copy of this assignment is attached as Exhibit 63. The assignment was recorded at the U.S. Patent and Trademark Office on January

⁴ As modified by International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020). Pursuant to International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020), the Commission has waived the requirements to file multiple paper copies and "the Commission has approved the temporary amendment of Rule 410.4(f)(2), Rule 210.75, Rule 210.76, and Rule 210.79 to permit parties to file section 337 complaints, exhibits, attachments, and appendices electronically."

11, 2016. *See* Ex. 63 at 2-5 (Reel 37452/0240).

86. The '693 Patent is a continuation of the application that ultimately issued as the '348 Patent and shares an almost identical specification and figures. *See* Section V.B.1. Accordingly, it too claims recliners that (a) reciprocate (e.g., rock or glide) and (b) move between certain reclining positions under the power of an actuating unit attached to a mechanism in the recliner.

2. Foreign Counterparts

87. There are no foreign patents or foreign patent applications pending, filed, abandoned, withdrawn, or rejected related to the '693 Patent.

3. Licenses

88. On November 5, 2012, Ultra-Mek Inc. entered into a license agreement to license the '693 Patent to Leggett & Platt Inc. A copy of the license agreement between Ultra-Mek Inc. and Leggett & Platt Inc. is shown in Exhibit 89C.

89. Ultra-Mek Inc. is not aware of any third-party entities licensed under the '693 Patent or third-party entities that have received from Ultra-Mek Inc. a covenant not to assert with respect to the '693 Patent.

D. The '165 Patent

1. Non-Technical Description

90. U.S. Patent No. 8,398,165 (the "'165 Patent"), entitled "Powered Rocker Recliner Linkage Mechanism," issued on March 19, 2013 to inventor Gregory M. Lawson. The '165 Patent issued from U.S. Patent App. Ser. No. 12/981,176 ("the '176 Application"), filed on December 29, 2010. The '176 Application claims priority to United States Provisional Patent App. Ser. No. 61/295,546, filed on January 15, 2010. A certified copy of the '165 Patent is included in Exhibit 68. The '165 Patent expires on May 11, 2031.

91. Complainants have filed with this complaint a certified copy of the prosecution history of the '165 Patent as Appendix C.⁵

92. The inventor assigned his rights in the '176 Application leading to the '165 Patent to L&P Property Management Company on December 20, 2010. A certified copy of this assignment is attached as Exhibit 64. The assignment was recorded at the U.S. Patent and Trademark Office on December 29, 2010. *See* Ex. 64 at 2-4 (Reel 25555/921).

93. The '165 Patent generally relates to mechanical components for moving a rocking recliner chair between different positions. More particularly, the '165 Patent relates to an improved linkage component that connects a rocking chair's footrest, seat, and backrest in a simplified manner, providing increased space for a motor unit to move the components of the chair without interfering with other components of the chair such as internal crossbeams or the chair's rocking mechanism.

94. According to the '165 Patent, a seating unit generally includes a base that contacts the floor and supports the seating unit; a seat where the occupant sits; a backrest that supports the occupant's back; and an extendable footrest that supports the occupant's legs. The seating unit also includes a mechanism that comprises a plurality of linkages which allow the seating unit to rock and move between closed, extended, and reclined positions. The mechanism also contains a linear actuator that moves the mechanism (and therefore, the seating unit), from one position to another.

⁵ As modified by International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020). Pursuant to International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020), the Commission has waived the requirements to file multiple paper copies and "the Commission has approved the temporary amendment of Rule 410.4(f)(2), Rule 210.75, Rule 210.76, and Rule 210.79 to permit parties to file section 337 complaints, exhibits, attachments, and appendices electronically."

95. The '165 Patent contains 19 total claims, including 3 independent claims and 16 dependent claims. The '165 Patent describes a pair of mirror-image linkage mechanisms that are more compact and space-efficient than previous linkage mechanisms. This provides increased space for a motor that “may be employed in a proficient and cost-effective manner to adjust the linkage mechanism without creating interference or other disadvantages appearing in the conventional designs that are inherent with automation.” '165 Patent, 2:23-27. The motor may also interconnect with the linking mechanisms via a “front motor tube” and “activator bar” which in addition to linking the motor to the linking mechanism, provide increased stability to the system by acting as “a set of crossbeams” *Id.*, 5:45-57. The paired linking mechanisms also couple with the rocker mechanisms without impairing the movement of the rocker mechanisms, “allow[ing] an occupant sitting in the rocker recliner to easily tilt or rock the linkage mechanism 100 back and forth in a rocking motion with minimal effort.” *Id.*, 8:53-56. Figure 4 of the '165 Patent depicts a perspective view of a linear actuator mounted to a linkage mechanism that is adjusted to a reclined position, in accordance with an embodiment of the invention.

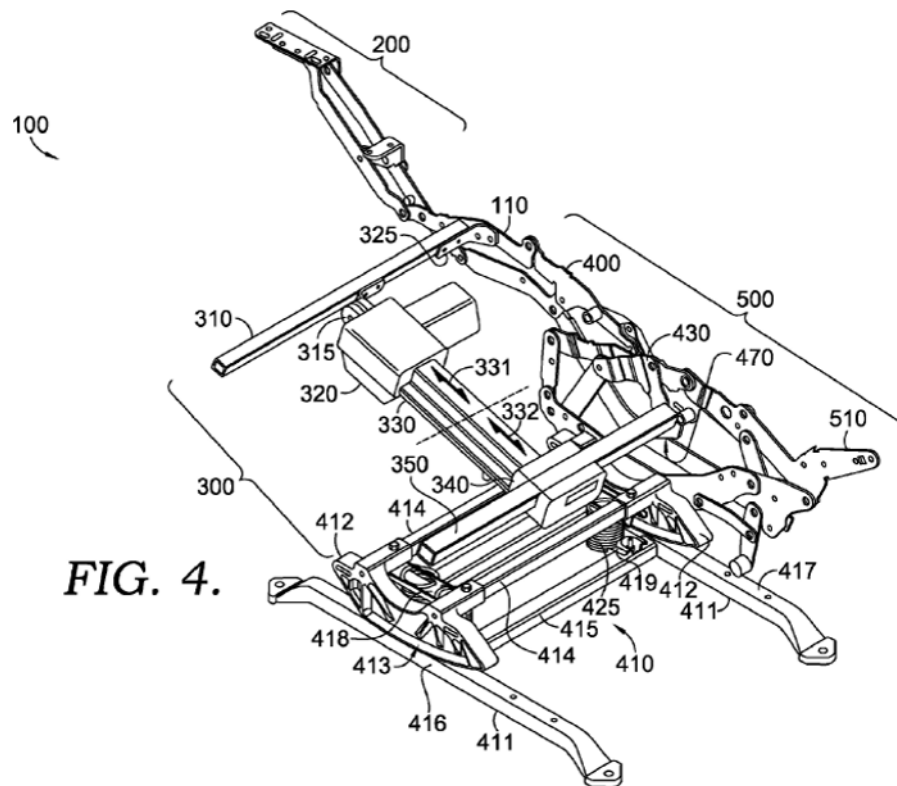


FIG. 4.

96. During prosecution of the '165 Patent, the examiner cited *inter alia* Ultra-Mek's '348 Patent as a basis of rejection for the pending claims. The applicant amended the pending claims to include requirements that the front motor tube is fixedly coupled to the front ottoman link of the footrest assembly; the front ottoman link is rotatably coupled to a seat-mounting plate; and a sequence element with a guide slot within a sequence link. The examiner subsequently issued a Notice of Allowance.

2. Foreign Counterparts

97. The foreign counterpart and family patents and/or applications to the '165 Patent are shown below. L&P Property Management Co. owns all right, title, and interest in and to each of these foreign counterpart patents and foreign counterpart applications. Apart from those listed here, Leggett & Platt is not aware of any other foreign patents or foreign patent applications pending, filed, abandoned, withdrawn, or rejected related to the '165 Patent.

Foreign Patent Applications Corresponding to '165 Patent	Prosecution Status & Foreign Patent Publications
PCT/US2011/020387 Filed: 01/06/2011	Pending WO20110879955A1 (Published 07/21/2011)
CN201110021296 Filed: 01/14/2011	Granted CN10213305A (Published 07/27/2011) CN10213305B (Published 02/17/2016)
AU2011205500 Filed: 01/06/2011	Granted AU2011205500A1 (Published 06/07/2012) AU2011205500B2 (Published 05/28/2015)
AU2015218473 Filed: 08/28/2015	Granted AU2015218473A1 (Published 09/17/2015) AU2015218473B2 (Published 01/19/2017)
EP11733214 Filed: 01/06/2011	Granted EP2523578A1 (Published 11/21/2012) EP2523578A4 (Published 12/25/2013) EP2523578B1 (Published 06/17/2015)
EP14197648 Filed: 01/06/2011	Granted EP2878229A1 (Published 06/03/2015) EP2878229B1 (Published 09/28/2016)
ES14197648T Filed: 01/06/2011	Granted ES260925T3 (Published 04/19/2017)
ES11733214T Filed: 01/06/2011	Granted ES2544286T3 (Published 08/28/2015)
CA2781057 Filed: 01/06/2011	Granted CA2781057A1 (Published 07/21/2011) CA2781057C (Published 09/18/2018)
MX2012008208 Filed: 01/06/2011	Granted MX2012008208A (Published 08/08/2012) MX337829B (Published 03/22/2016)

3. Licenses

98. L&P is L&P Property Management Co.'s exclusive licensee of the '165 patent. A copy of the license between L&P Property Management Co. and L&P is shown in Exhibit 90C.

99. L&P is not aware of any third-party entities licensed under the '165 Patent or third-party entities that have received from L&P a covenant not to assert with respect to the '165 Patent.

E. The '168 Patent

1. Non-Technical Description

100. U.S. Patent No. 8,398,168 (the "'168 Patent"), entitled "Powered Glider Recliner Linkage Mechanism," issued on March 19, 2013 to inventor Gregory M. Lawson. The '168 Patent issued from U.S. Patent App. Ser. No. 12/870,498 ("the '498 Application"), filed on August 27, 2010. The '498 Application claims priority to United States Provisional Patent App. Ser. No. 61/295,544, filed on January 15, 2010. A certified copy of the '168 Patent is included in Exhibit 69. The '168 Patent expires on April 21, 2030.

101. Complainants have filed with this complaint a certified copy of the prosecution history of the '168 Patent as Appendix D.⁶

102. The inventor assigned his rights in the '498 Application leading to the '168 Patent to L&P Property Management Company on August 23, 2010. A certified copy of this assignment is attached as Exhibit 65. The assignment was recorded at the U.S. Patent and Trademark Office on August 27, 2010. *See* Ex. 65 at 2-4 (Reel 24902/26).

103. The '168 Patent generally relates to mechanical components for moving a gliding recliner chair between different positions. More particularly, the '168 Patent relates to a linkage component that connects a chair's footrest/ottoman, seat, and backrest to its glider mechanism in a simplified manner, providing increased space for a motor unit to automatically move the components of the chair without interfering with other components of the chair such as internal

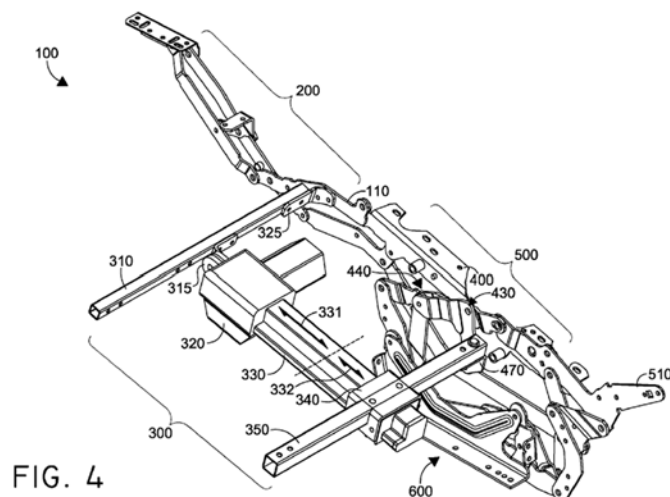
⁶ As modified by International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020). Pursuant to International Trade Commission, Temporary Changes to Filing Procedures, Federal Register Vol. 85, No. 54 (March 19, 2020), the Commission has waived the requirements to file multiple paper copies and "the Commission has approved the temporary amendment of Rule 410.4(f)(2), Rule 210.75, Rule 210.76, and Rule 210.79 to permit parties to file section 337 complaints, exhibits, attachments, and appendices electronically."

crossbeams or the chairs glider mechanism.

104. According to the '168 Patent, a seating unit generally includes a base that contacts the floor and supports the seating unit; a seat where the occupant sits; a backrest that supports the occupant's back; and an extendable footrest that supports the occupant's legs. The seating unit also includes a mechanism that comprises a plurality of linkages which allow the seating unit to glide and move between closed, extended, and reclined positions. The mechanism also contains a linear actuator that moves the mechanism (and therefore, the seating unit), from one position to another.

105. The '168 Patent contains 19 total claims, including 3 independent claims and 16 dependent claims. The '168 Patent describes a pair of mirror image linkage mechanisms that are more compact and space-efficient than previous linkage mechanisms. This provides increased space for a motor that "may be employed in a proficient and cost-effective manner to adjust the linkage mechanism without creating interference or other disadvantages appearing in the conventional designs that are inherent with automation." '168 Patent, 2:24-32. The motor may also interconnect with the linking mechanisms via a "front motor tube" and "activator bar" which in addition to linking the compact motor to the linking mechanism, provide increased stability to the system by acting as "a set of crossbeams" *Id.*, 5:45-54. Figure 4 of the '168 Patent depicts a perspective view of a linear actuator mounted to a linkage mechanism that is adjusted to a

reclined position in accordance with an embodiment of the invention.



2. Foreign Counterparts

106. The foreign counterpart and family patents and/or applications to the '168 Patent are shown below. L&P Property Management Co. owns all right, title, and interest in and to each of these foreign counterpart patents and foreign counterpart applications. Apart from those listed here, L&P is not aware of any other foreign patents or foreign patent applications pending, filed, abandoned, withdrawn, or rejected related to the '168 Patent.

Foreign Patent Applications Corresponding to '168 Patent	Prosecution Status & Foreign Patent Publications
PCT/US2011/020387 Filed: 01/06/2011	Pending WO20110879955A1 (Published 07/21/2011)
CN201110021296 Filed: 01/14/2011	Granted CN10213305A (Published 07/27/2011) CN10213305B (Published 02/17/2016)
AU2011205500 Filed: 01/06/2011	Granted AU2011205500A1 (Published 06/07/2012) AU2011205500B2 (Published 05/28/2015)
AU2015218473 Filed: 08/28/2015	Granted AU2015218473A1 (Published 09/17/2015) AU2015218473B2 (Published 01/19/2017)
EP11733214 Filed: 01/06/2011	Granted EP2523578A1 (Published 11/21/2012)

	EP2523578A4 (Published 12/25/2013) EP2523578B1 (Published 06/17/2015)
EP14197648 Filed: 01/06/2011	Granted EP2878229A1 (Published 06/03/2015) EP2878229B1 (Published 09/28/2016)
ES14197648T Filed: 01/06/2011	Granted ES260925T3 (Published 04/19/2017)
ES11733214T Filed: 01/06/2011	Granted ES2544286T3 (Published 08/28/2015)
CA2781057 Filed: 01/06/2011	Granted CA2781057A1 (Published 07/21/2011) CA2781057C (Published 09/18/2018)
MX2012008208 Filed: 01/06/2011	Granted MX2012008208A (Published 08/08/2012) MX337829B (Published 03/22/2016)

3. Licenses

107. L&P is L&P Property Management Co.'s exclusive licensee of the '168 patent. A copy of the license between L&P Property Management Co. and L&P is shown in Exhibit 90C.

108. L&P is not aware of any third-party entities licensed under the '168 Patent or third-party entities that have received from L&P a covenant not to assert with respect to the '168 Patent.

VI. UNFAIR ACTS OF THE RESPONDENTS

109. On information and belief, Living Style, the Henglin Respondents, and Carya Smart import into the United States, sell for importation into the United States, and/or sell in the United States after importation the Accused Products that infringe the Asserted Patents in violation of 19 U.S.C. § 1337(a)(1)(B)(ii).

110. For example, on information and belief Carya Smart sells the Accused Mechanisms for importation into the United States by selling the Accused Mechanisms to furniture manufacturers, including but not limited to Living Style and Henglin, who incorporate the Accused Mechanisms into finished Accused Seating Units, knowing and intending that

furniture manufacturers then import the Accused Seating Units into the United States, sell them for importation into the United States, and/or sell them in the United States after importation.

Exs 49, 50; Ex. 25C ¶¶ 4-6.



111. On information and belief, Living Style sources the Accused Mechanisms from Carya Smart, incorporates them into finished seating units (the Accused Seating Units) and imports the Accused Seating Units into the United States, sells them for importation into the United States, and/or sells them in the United States after importation. Ex. 25C ¶¶ 4, 6.

112. On information and belief, Living Style's Accused Seating Units are manufactured in at least Vietnam and imported into the United States, sold for importation into the United States, and/or sold in the United States after importation. For example, Living Style (Vietnam) manufactures the Accused Seating Units and sells them for importation into the United States to Living Style (Singapore). Exs. 47, 48.



113. Living Style (Singapore) sells and imports the Accused Seating Units into the United States to True Innovations Design USA LLC for sale after importation. Ex. 17. On information and belief, Living Style (Singapore) also sells the Accused Seating Units for importation into the United States to furniture retailers and big-box retailers to be sold in stores and online. Ex. 17; Ex. 25C ¶¶ 4, 6.

2021-08-08	LIVING STYLE SINGAPORE PTE LTD 1 KALLANG JUNCTION, #05-01 SINGAPORE 339263 SINGAPORE 339263 phone - Email -	TRUE INNOVATIONS DESIGN USA LLC 2206 SOUTH GREEN STREET, TUPELO, MS 38804 TUPELO 38804 phone - Email -	PO# SP007 UE1 POWER LEATHER SWIVEL GLIDER RECLINER WITH ADJUSTABLE HEADREST (BARCALOUNGER) LEATHER DUAL POWER RECLINING LOVESEAT WITH CONSOLE (BARCALOUNGER) CXDU1160318 001 LEATHER DUAL POWER DOUBLE RECLINING SOFA (BARCALOUNGER) HS CODE: 9401.61
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114. On information and belief, Henglin sources the Accused Mechanisms from Carya Smart and imports them into the United States and/or sells them for importation into the United States by incorporating the Accused Mechanisms into finished chairs (the Accused Seating Units) that are then imported into, or sold for importation into, the United States. Exs. 51, 55; Ex. 25C ¶¶ 5, 6.



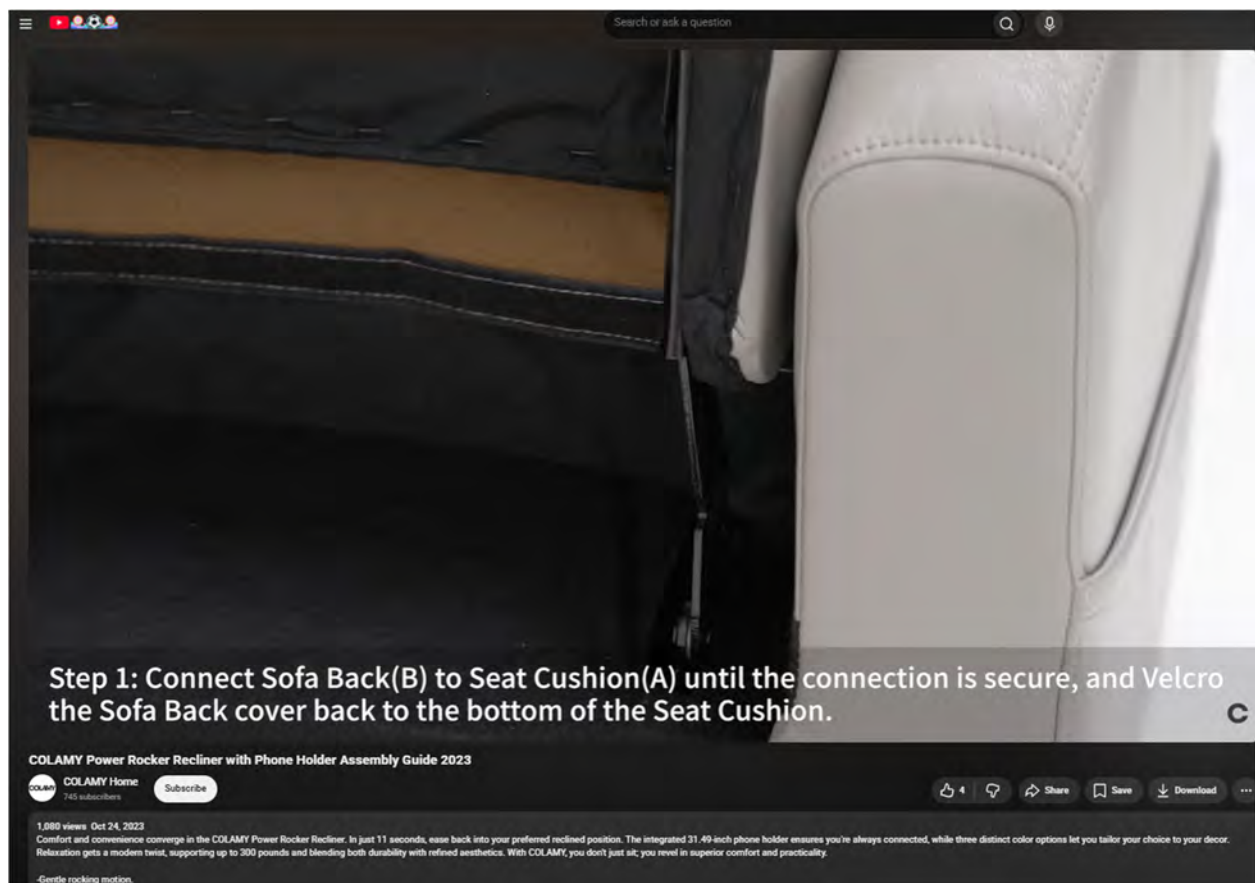
115. On information and belief, Henglin's Accused Seating Units are manufactured in China and imported into the United States, sold for importation into the United States, and/or sold in the United States after importation. Exs. 51, 55; Ex. 25C ¶¶ 5, 6.



116. Upon information and belief, Henglin manufactures the Accused Seating Units

and sells for importation the Accused Seating Units into the United States by itself and/or through its subsidiary, Nanjing. Upon information and belief, Nanjing imports the Accused Seating Units into the United States and then sells them to directly and/or indirectly consumers through major e-commerce sites after importation. Upon information and belief, Nanjing identifies certain of Henglin's Accused Seating Units by the model number "60399C" on at least one major e-commerce site.

117. On information and belief, product information videos for power recliners listed under variations of the model number 60399C have been uploaded by Nanjing to at least one major online retailer and YouTube on the YouTube channel @COLAMYHOME. Ex. 76.



118. The model number "60399" is the same model number that appears in product literature sold with infringing COLAMY products in the United States.



119. Upon information and belief, Henglin sells for importation into the United States or sells in the United States after importation the Accused Seating Units under the “COLAMY” brand through one or more of its subsidiaries Nanjing Colamy, Inc.; and/or Zhejiang Hengjian. Exs. 20, 21; Ex. 19. Nanjing Co. owns the COLAMY U.S. trademark under which infringing products are sold. Ex. 26.

120. The Accused Glider Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-7 and 15-18 of the ’168 Patent, literally and/or under the doctrine of equivalents. A chart showing infringement of Claims 1-7 and 15-18 of the ’168 Patent by the Representative Glider and Representative Glider Mechanism is attached as Exhibit 6.

121. The Accused Glider Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-4 and 6-9 of the ’348 Patent, literally and/or under the doctrine of equivalents. A chart showing infringement of Claims 1-4 and 6-9 of the ’348 Patent by the Representative Glider and Representative Glider Mechanism is attached as Exhibit 4.

122. The Accused Glider Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-7 and 11-14 of the ’693 Patent, literally and/or under the doctrine of

equivalents. A chart showing infringement of Claims 1-7 and 11-14 of the '693 Patent by the Representative Glider and Representative Glider Mechanism is attached as Exhibit 5.

123. The Accused Rocker Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-7 and 15-18 of the '165 Patent, literally and/or under the doctrine of equivalents. A chart showing infringement of Claims 1-7 and 15-18 of the '165 Patent by the Representative Rocker and Representative Rocker Mechanism is attached as Exhibit 3.

124. The Accused Rocker Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-4 and 6-9 of the '348 Patent, literally and/or under the doctrine of equivalents. A chart showing infringement of Claims 1-4 and 6-9 of the '348 Patent by the Representative Rocker and Representative Rocker Mechanism is attached as Exhibit 1.

125. The Accused Rocker Mechanisms and Accused Seating Units incorporating the same infringe Claims 1-7 and 12-14 of the '693 Patent, literally and/or under the doctrine of equivalents. A chart showing infringement of Claims 1-7 and 12-14 of the '693 Patent by the Representative Glider and Representative Gliding Mechanism is attached as Exhibit 2.

A. Direct Infringement (35 U.S.C. § 271(a))

126. Living Style directly infringes Claims 1-7 and 15-18 of the '168 Patent; Claims 1-4 and 6-9 of the '348 Patent; and Claims 1-7 and 11-14 of the '693 Patent by the manufacture abroad, the sale for importation into the United States, the importation into the United States, and/or the sale within the United States after importation of the Accused Glider Mechanisms and Accused Seating Units incorporating the same.

127. Living Style directly infringes Claims 1-7 and 15-18 of the '165 Patent; Claims 1-4 and 6-9 of the '348 Patent; and Claims 1-7 and 12-14 of the '693 Patent; by the manufacture abroad, the sale for importation into the United States, the importation into the United States,

and/or the sale within the United States after importation of the Accused Rocker Mechanisms and Accused Seating Units incorporating the same.

128. The Henglin Respondents directly infringe Claims 1-7 and 15-18 of the '168 Patent; Claims 1-4 and 6-9 of the '348 Patent; and Claims 1-7 and 11-14 of the '693 Patent by the manufacture abroad, the sale for importation into the United States, the importation into the United States, and/or the sale within the United States after importation of the Accused Glider Mechanisms and Accused Seating Units incorporating the same.

129. The Henglin Respondents directly infringe Claims 1-7 and 15-18 of the '165 Patent Claims 1-4 and 6-9 of the '348 Patent; Claims 1-7 and 12-14 of the '693 Patent by the manufacture abroad, the sale for importation into the United States, the importation into the United States, and/or the sale within the United States after importation of the Accused Rocker Mechanisms and Accused Seating Units incorporating the same.

130. Carya Smart directly infringes 15-18 of the '168 Patent by the manufacture abroad, the sale for importation into the United States, the importation into the United States, and/or the sale within the United States after importation of the Accused Glider Mechanisms.

131. Carya Smart directly infringes 15-18 of the '165 Patent by the manufacture abroad, the sale for importation into the United States, the importation into the United States, and/or the sale within the United States after importation of the Accused Rocker Mechanisms.

132. The chart below summarizes these direct infringement allegations.

	Patents and Claims Infringed			
Party	'348 Patent	'693 Patent	'165 Patent	'168 Patent
Living Style	Claims 1-4, 6-9	Claims 1-7, 11-14	Claims 1-7, 15-18	Claims 1-7, 15-18
Henglin Respondents	Claims 1-4, 6-9	Claims 1-7, 11-14	Claims 1-7, 15-18	Claims 1-7, 15-18
Carya Smart			Claims 15-18	Claims 15-18

B. Indirect Infringement (35 U.S.C. § 271(b))

133. Living Style knowingly induces the infringement of the Asserted Patents by its customers such as furniture retailers and consumers who purchase the Accused Seating Units from Living Style.

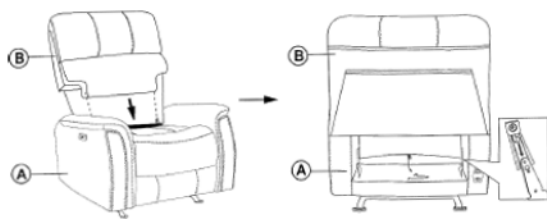
134. Living Style has knowledge of the Asserted Patents, and its infringement of the Asserted Patents, since at least the filing of the instant complaint. Living Style has been aware of Ultra-Mek's patents, including at least the '693 Patent, as early as February 23, 2023 when Ultra-Mek sent a cease-and-desist letter to Living Style's licensor Barcalounger. *See* Ex. 78C. Living Style also received a cease-and-desist letter sent May 15, 2023 to Living Style's subsidiary True Innovations, and Living Style's attorney responded June 7, 2023. *See* Ex. 58C. Living Style has been aware of Leggett & Platt's patents, including at least the '165 Patent, as early as April 19, 2023 when Leggett & Platt sent a letter to Living Style's licensor Barcalounger. *See* Ex. 80C. Leggett & Platt also sent a letter directly to Living Style on June 13, 2023 and Living Style's attorney responded on July 10, 2023. *See* Ex. 81C.

135. On information and belief, Living Style actively, knowingly, and intentionally induces infringement of the Asserted Patents by, for example, selling for importation into the United States, importing, offering for sale and selling in the United States after importation, supplying, and otherwise providing instruction and guidance regarding, the Accused Products with the knowledge and specific intent to encourage and facilitate infringing sales and importations of such products by its customers and end-users (such as furniture retailers and their customers), inside the United States. For example, Living Style provides instruction manuals with each sold Accused Seating Unit which instruct users on the assembly and operation of the Accused Seating Units, thereby instructing customers on uses of Living Style's products that

infringe the Asserted Patents. Ex. 45.

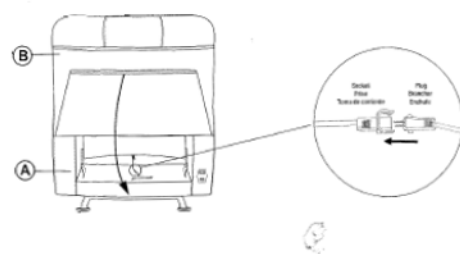


Step 1 / Étape 1 / Paso 1

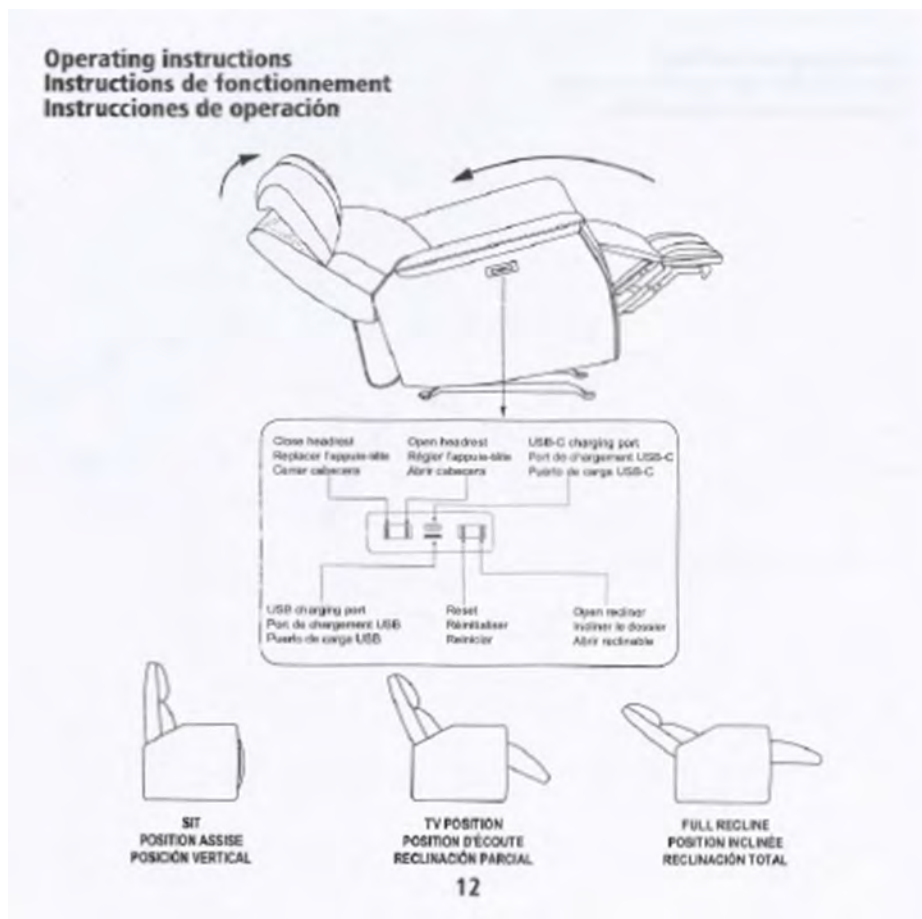


8

Step 2 / Étape 2 / Paso 2



9



136. Living Style also advertises, and encourages furniture retailers to purchase, the Accused Seating Units at trade shows. For instance, on information and belief Respondent Living Style maintains an exhibit at the High Point Furniture Market in High Point, North Carolina where it displays, demonstrates, and offers for sale products including the Accused Seating Units. Ex. 87.

137. The Henglin Respondents knowingly induce the infringement of the Asserted Patents by their customers such as furniture retailers and consumers who purchase the Accused Seating Units from the Henglin Respondents.

138. Henglin has knowledge of the Asserted Patents, and its infringement of the Asserted Patents, since at least the filing of the instant complaint. Henglin has been aware of

Ultra-Mek's patents, including at least the '693 Patent, as early as September 9, 2025 when Ultra-Mek sent a cease-and-desist letter to Henglin. *See* Ex. 82C. Henglin has been aware of Leggett & Platt's patents, including at least the '168 Patent, as early as June 6, 2025 when Leggett & Platt sent a letter to Henglin. *See* Ex. 83C.

139. On information and belief, Henglin actively, knowingly, and intentionally induces infringement of the Asserted Patents by, for example, selling for importation, offering for sale and selling, supplying, and otherwise providing instruction and guidance regarding the Accused Products with the knowledge and specific intent to encourage and facilitate infringing sales and uses of such products by its customers and end-users (such as furniture retailers and their customers), both inside and outside the United States.

140. For example, Henglin provides an instruction manual with each sold Accused Seating Unit that contains instructions for customers on how to assemble the Accused Seating Units and use those Accused Seating Units. Ex. 46. Henglin also provides a QR code on the back cover of the instruction manual that links to Henglin's YouTube page, where customers can view videos of how to assemble and operate the Accused Seating Units. *See* Ex. 76.

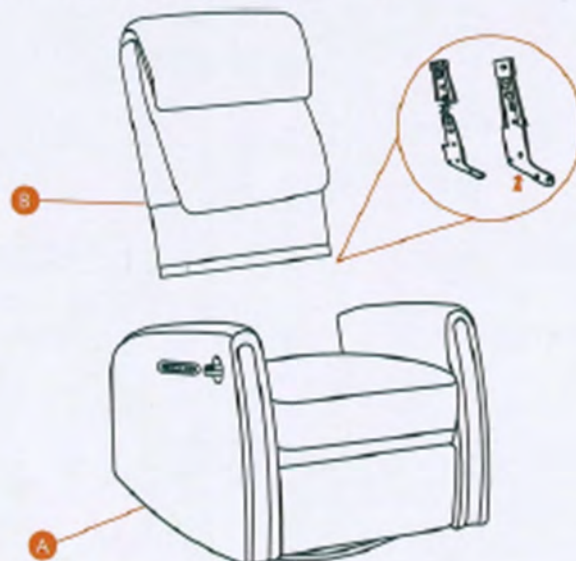
COLAMY
INSTRUCTION MANUAL

Model No.: HL-60399

ASSEMBLY INSTRUCTIONS

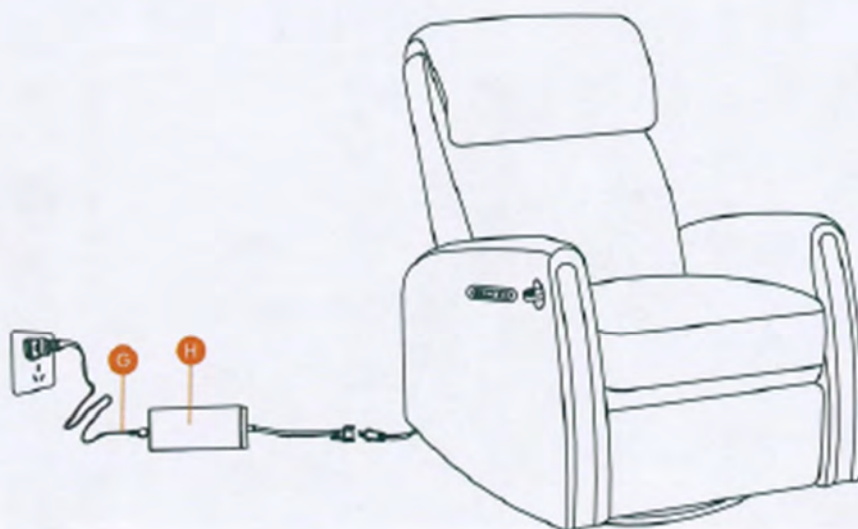
Step 1

Connect Sofa Back(B) to Seat Cushion(A) until the connection is secure, and Velcro the Sofa Back cover back to the bottom of the Seat Cushion.



Step 2

Connect the Power Cable(G) and the Power Supply(H), then switched on.





141. Respondent Henglin also advertises the Accused Seating Units and encourages furniture retailers to purchase the Accused Seating Units at trade shows. For instance, on information and belief Respondent Henglin maintains an exhibit at the High Point Furniture Market in High Point, North Carolina where it displays, demonstrates, and offers for sale products including the Accused Seating Units. Ex. 88.

142. Carya Smart knowingly induces and/or contributes to the infringement of the Asserted Patents by its customers such as Living Style and Henglin who purchase the Accused Mechanisms from Carya Smart.

143. Carya Smart has knowledge of the Asserted Patents, and its infringement of the Asserted Patents, since at least the filing of the instant complaint. Carya Smart has been aware of Ultra-Mek's patents as early as September 25, 2025 when Ultra-Mek sent a cease-and-desist letter to Carya Smart. *See* Ex. 86C. Carya Smart has been aware of Leggett & Platt's patents, including at least the '165 Patent, as early as July 10, 2023 when Leggett & Platt sent a letter to Carya Smart. *See* Ex. 85C. Leggett & Platt also sent a letter to Carya Smart informing them of the '168 Patent on June 6, 2025 and Carya Smart's attorney responded on August 6, 2025. *See* Exs. 59C, 60.

144. On information and belief, Carya Smart actively, knowingly, and intentionally induces infringement of the Asserted Patents by, for example, selling for importation into the United States, offering for sale in the United States after importation, supplying, and otherwise providing instruction and guidance regarding, the Accused Mechanisms with the knowledge and specific intent to encourage and facilitate infringing sales and uses of end products incorporating the Accused Mechanisms by its customers and end-users (such as furniture manufacturers and their customers), in the United States. For example, Carya Smart intentionally assigns numeric designations to the Accused Mechanisms which directly copy and/or closely resemble the numeric designations of the Covered Mechanisms. As one example, the Carya Smart 5115 power-rocker mechanism's numeric designation closely resembles the numeric designation of Leggett & Platt's 5151 power-rocker mechanism.

145. As another example, Carya Smart intentionally designs components of the

Accused Mechanisms to visually resemble components of the Domestic Industry Products. For instance, the sequencer plate / rear pivot link and sequence link of the Carya Smart 7115 Accused Mechanism is virtually identical to the sequencer plate / rear pivot link and sequence link of the L&P 5181 Mechanism.

**COVERED MECHANISM
L&P 5181**



**ACCUSED MECHANISM
CARYA SMART 7115**



146. On information and belief, Carya Smart also contributes to infringement of the Asserted Patents by importing into the United States, selling for importation into the United States, and/or selling within the United States after importation the Accused Mechanisms, which are not suitable for substantial non-infringing use and which embody a material part of the inventions described in the Asserted Patents. The Accused Mechanisms are known by Carya Smart to be especially made and especially adapted for use in the infringement of the Asserted

Patents. For instance, the Accused Mechanisms cannot be used in manual rockers or gliders because they do not have the appropriate linkages for manual operation—they can only be used in power-rockers and power-gliders.

147. On information and belief, Living Style, Henglin, and Carya Smart have had knowledge of at least the '348 and '693 Patents since those patents were asserted by Ultra-Mek against Man Wah Holdings Ltd. and its subsidiaries in *Ultra-Mek, Inc. v. Man Wah (USA), Inc.*, No. 1:16-CV-41 (M.D.N.C.), which resulted in a consent injunction entered by the court on March 17, 2017; and when the '348 and '693 Patents were asserted by Ultra-Mek against United Furniture Industries, Inc. and entities related to Man Wah Holdings Ltd. in *Ultra-Mek, Inc. v. United Furniture Industries, Inc. et al.*, No. 1:18-CV-281 (M.D.N.C.), which resulted in a consent injunction entered by the court on November 17, 2022. On information and belief, each of Living Style, Henglin, and Carya Smart were aware of these actions and their outcomes at least because Living Style and Henglin directly compete with the Man Wah Group and monitor U.S. litigation involving their competitors, and Carya Smart is a supplier of furniture mechanisms to Living Style and Henglin.

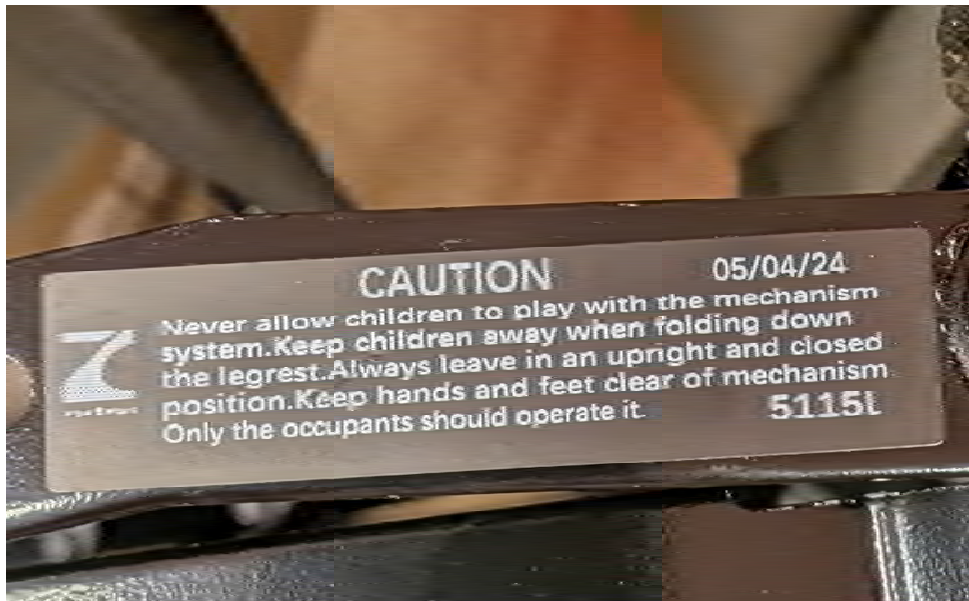
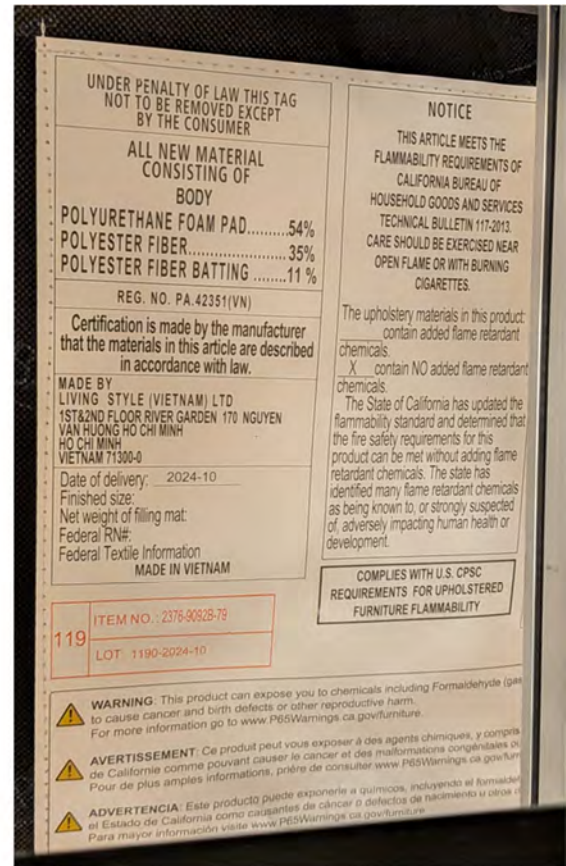
148. The chart below summarizes these indirect infringement allegations.

	Patents and Claims Indirectly Infringed			
Party	'348 Patent	'693 Patent	'165 Patent	'168 Patent
Living Style	Claims 1-4, 6-9 (inducement)	Claims 1-7, 11-14 (inducement)	Claims 1-7, 15-18 (inducement)	Claims 1-7, 15-18 (inducement)
Henglin	Claims 1-4, 6-9 (inducement)	Claims 1-7, 11-14 (inducement)	Claims 1-7, 15-18 (inducement)	Claims 1-7, 15-18 (inducement)
Carya Smart	Claims 1-4, 6-9 (inducement & contributory)	Claims 1-7, 11-14 (inducement & contributory)	Claims 15-18 (inducement)	Claims 15-18 (inducement)

C. Specific Instances of Importation and Sale

149. Complainants have purchased a sample Accused Seating Unit containing an

Accused Rocker Mechanism in the United States—a Barcalounger Rocker-Recliner containing a Carya Smart 5115 rocker mechanism. Ex. 25C ¶¶ 4, 6. As shown in the image below, the product label for this Accused Seating Unit indicates it was “MADE IN VIETNAM” by “Living Style (Vietnam) Ltd.”, which is a subsidiary of Living Style. Ex. 25C ¶ 4. As seen in the photograph below, this Accused Seating Unit contained a Carya Smart 5115 rocker mechanism. Ex. 25C ¶ 4.



150. As is demonstrated in Exs. 1 – 3, the BARCALOUNGER Accused Seating Unit depicted above infringes Claims 1-7 and 15-18 of the '165 Patent; Claims 1-4 and 6-9 of the '348 Patent; and Claims 1-7 and 12-14 of the '693 Patent. On August 8, 2021, a shipment of 138

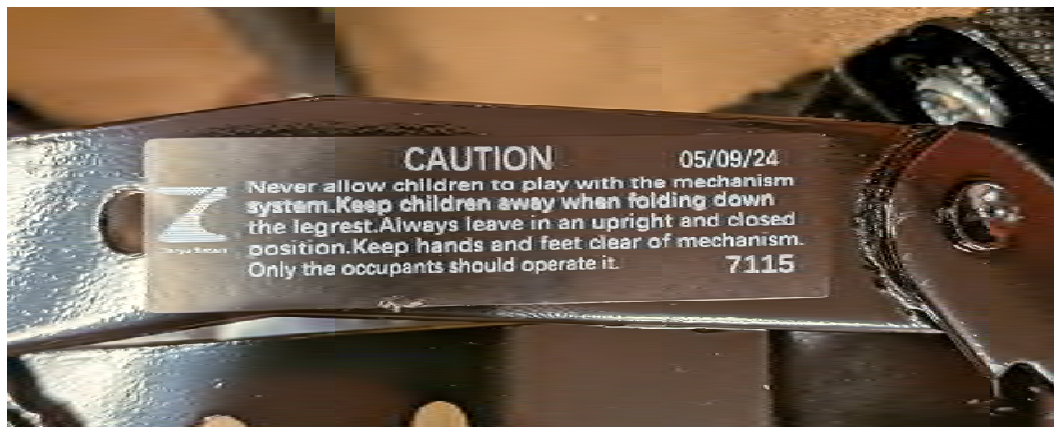
units of “Power Leather Swivel Glider Recliner with Adjustable Headrest (BARCALOUNGER)” arrived in the United States from Living Style Singapore Pte. Ltd. in Singapore. Ex. 17. The buyer is listed as “True Innovations Design USA LLC” in Tupelo, MS. On information and belief, this import record is for the importation of an Accused Seating Unit from Respondent Living Style into the United States. Therefore, Respondent Living Style manufactured the Accused Seating Unit in Vietnam, sold it for importation into the United States, imported into the United States the Accused Seating Unit, and sold the Accused Seating Unit depicted above, which includes a Carya Smart mechanism, after importation in the United States.

2021-08-08	LIVING STYLE SINGAPORE PTE LTD 1 KALLANG JUNCTION, #05-01 SINGAPORE 339263 SINGAPORE 339263 phone - Email -	TRUE INNOVATIONS DESIGN USA LLC 2206 SOUTH GREEN STREET, TUPELO, MS 38804 TUPELO 38804 phone - Email -	PO# SP007 UE1 POWER LEATHER SWIVEL GLIDER RECLINER WITH ADJUSTABLE HEADREST (BARCALOUNGER) LEATHER DUAL POWER RECLINING LOVESEAT WITH CONSOLE (BARCALOUNGER) CXDU1160318 001 LEATHER DUAL POWER DOUBLE RECLINING SOFA (BARCALOUNGER) HS CODE: 9401.61
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151. Complainants also notified Living Style of its infringement and, in response, Living Style’s counsel admitted that “it is Living Style that [sic] making, using, selling, offering for sale, and/or importing the Living Style Lounger.” Ex. 58C.

152. Complainants have also purchased a sample Accused Seating Unit containing an Accused Glider Mechanism in the United States—a COLAMY Glider-Recliner which, as shown in the photograph below, contains a Carya Smart 7115 glider mechanism. Ex. 25C ¶ 5. As shown in the image below, the product label for this COLAMY Accused Seating Unit indicates it was “MADE IN CHINA” by “Zhejiang Henglin Chair Industry Co. Ltd.”⁷

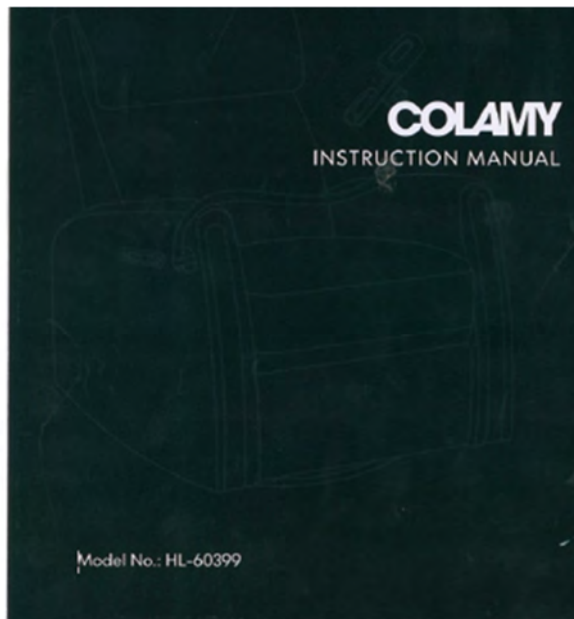
⁷ “Zhejiang Henglin Chair Industry Co. Ltd.” is the former corporate name of Respondent Henglin. Ex. 39.



153. The COLAMY Glider had COLAMY tags that include contact information including the URL for colamyhome.com.



154. The COLAMY Glider also included a manual that refers to the model number as “HL-60399,” which is the same model number (60399) under which Nanjing sells an identical product on an online retail site.



155. As is demonstrated in Exs. 4 – 6, the COLAMY Accused Seating Unit depicted above infringes Claims 1-7 and 15-18 of the '168 Patent; Claims 1-4 and 6-9 of the '348 Patent;

and Claims 1-7 and 11-14 of the '693 Patent.

156. Nanjing has described a product it offers on a major e-commerce site for sale in the United States as the “COLAMY Swivel Recliner Glider Rocking Nursery Chair, Power Recliner Rocking Chair for Living Room, **Glider Recliner Nursery Chair** for Bedroom, **Accent Armchair** with Built-in Charging Ports, Chocolate”.

157. A product description similar to the one above used by Nanjing on major e-commerce sites to sell the Accused Seating Units (including those bearing model number 60399) appears in import records involving Henglin subsidiary Zhejiang Hengjian. Ex. 19. On May 13, 2025, a shipment of 401 units of “Glider Recliner Nursery Chair Accent Chair” from Zhejiang Hengjian Home Furnishing in China arrived in the United States, with its buyer listed as “Aerisnexus Innovations, Inc.” in Oklahoma City, OK. Ex. 19.

10	2025-05-13	ZHEJIANG HENGJIAN HOME FURNISHING C ROOM 1108,SOUTH BUILDING,318 BAISH HANGZHOU ZJ CHINATE 86622865 phone - Email -	AERISNEXUS INNOVATIONS INC 2220 NW 36TH ST OKLAHOMA CITY OK UNITED STATESTE 7661299 phone - Email -	GLIDER RECLINER NURSERY CHAIR ACCENT CHAIR	OOLU21572 11550	HAI-WIND WORLDWIDE INC 923 E. VALLEY BLVD., UNIT 201 SAN GABRIEL CA UNITED STATES phone - Email -	401.0	1703 Savannah, Georgia

158. As stated above, Zhejiang Hengjian Home Furnishing is a subsidiary of Henglin. Ex. 77. On information and belief, this import record is for the importation of an Accused Seating Unit from the Henglin Respondents into the United States. Therefore, the Henglin Respondents manufactured the Accused Seating Units, sold them for importation into the United States, imported into the United States the Accused Seating Units, and sold them after importation into the United States.

VII. THE DOMESTIC INDUSTRY

159. As required by Section 337(a)(2) and defined by Section 337(a)(3), an industry in the United States exists in connection with articles protected by the Asserted Patents under

subsections A, B, and C of Section 337(a)(3). Complainants have made significant investments in plant and equipment, employed significant labor and capital, and made substantial investments in engineering, research and development, and pre- and post-sale support related to products that embody the Asserted Patents. Specifically, Complainants have invested substantial and significant resources in engineering, research and development, design, manufacture, assembly, testing, quality assurance, manufacturing support, logistics, supply chain management, warranty and customer support, sales, and marketing, and other support activities for the Domestic Industry Products.

A. Technical Prong

160. The Ultra-Mek Domestic Industry Products are Ultra-Mek Rocker Mechanisms in the 7800-series and seating units comprising the same; and Ultra-Mek Glider Mechanisms in the 7900-series and seating units comprising the same. Examples of some of Ultra-Mek's Domestic Industry Products are the 7800 Rocker Mechanism and the 7900 Glider Mechanism shown in Exhibits 13 - 16.

161. L&P's Domestic Industry Products include products sold under the following lines: the Delta Rocker, the Delta Glider, the CZ Rocker, the CZ Glider, the BEST ROCKER, the BEST GLIDER, the EZ-Pro Rocker, and the EZ-Pro Glider, and seating units incorporating the same. Examples of some of L&P's Domestic Industry Products are the L&P 5151 Delta Rocker Mechanism and the 5181 Delta Glider Mechanism shown in Exhibits 7 - 12.

162. Each of the Ultra-Mek Domestic Industry Products and the L&P Domestic Industry Products practices at least one claim of the Asserted Patents. Claim charts showing how the Domestic Industry Products practice the Asserted Patents are attached as Exhibits 7 through 16.

B. Economic Prong

163. A domestic industry exists with respect to the Covered Products (Domestic Industry Products) protected by the Asserted Patents by virtue of the significant and substantial investments in facilities and equipment, labor and capital, and exploitation of the Asserted Patents made by Complainants (and in the case of Ultra-Mek, its licensee L&P) through their manufacture, distribution, research, development, and other product support activities of the Covered Products, as laid out in Confidential Exhibits 23C and 24C.

164. Complainants' U.S. activities in support of and relating to the Domestic Industry Products are widespread, significant, substantial, and varied. A subset of those activities is described here. Ultra-Mek's Domestic Industry Products are designed, manufactured, warehoused, distributed, supported, and sold in and from the United States in Denton, North Carolina. Ultra-Mek's Domestic Industry Products are manufactured using steel, plastic, and other components produced in the United States.

165. L&P maintains extensive U.S. operations supporting L&P's Domestic Industry Products, including research and development, engineering, domestic component manufacturing, sourcing, assembly, warehousing, distribution, repairs and replacements, field technical support, sales, and marketing. L&P manufactures key components such as swivels, ring bases, cross-members, and seat boxes in the United States, using domestic labor and many U.S.-sourced raw materials and components. L&P maintains distribution centers and facilities in California, Indiana, Kentucky, Mississippi, North Carolina, and Tennessee that perform various functions—including manufacturing, assembly, warehousing, shipping, and quality control—with respect to L&P's Domestic Industry Products. Many of these distribution centers also have a display space for customers to see samples of L&P's Domestic Industry Products. L&P also pays royalties to

Ultra-Mek for sales of Domestic Industry Products. L&P's U.S.-based activities are further described in Exhibit 23C.

166. Complainants maintain, and intend to maintain, a robust domestic industry in the United States relating to the Domestic Industry Products protected by the Asserted Patents by reasons of Complainants' and their licensees' (a) significant investment in facilities and equipment, (b) significant employment of labor and capital, and (c) substantial investment in exploitation, including engineering, research, and development.

VIII. TARIFF CODE CLASSIFICATION

167. The products at issue may be classified under the following headings of the Harmonized Tariff Schedule of the United States ("HTSUS"): 9401.61; 9401.99.9085; 8501.31.4000; 8544.42.9090; 8537.10.9170, 8504.40.9520. These HTSUS numbers are illustrative only and are not intended to restrict the scope of this investigation.

IX. RELATED LITIGATION

168. Pursuant to 19 C.F.R. § 210.12(a)(5), Complainants state that they are asserting the Asserted Patents in an action to be filed in the United States District Court for the Central District of California, against Living Style, Henglin, and Carya Smart. On information and belief, the unfair acts of the Proposed Respondents and subject matter thereof described herein have not been the subject of any other court or agency litigation or arbitration.

169. The '348 and '693 Patents were asserted in *Ultra-Mek, Inc. v. Man Wah (USA), Inc.*, No. 1:16-cv-00041 (Jan. 15, 2016 M.D.N.C.) and *Ultra-Mek, Inc. v. United Furniture Industries, Inc.*, No. 1:18-cv-00281 (Apr. 10, 2018 M.D.N.C.). Both cases ultimately settled and resulted in entry of permanent consent injunctions.

170. The Chinese counterpart of the '165 and '168 Patents, CN1021333005B, was the

subject of China National Intellectual Property Administration invalidation proceedings resulting in Invalidation Decisions Nos. 57958 and 566375 where claims 1-18 of CN1021333005B were ultimately found invalid.

X. RELIEF REQUESTED

WHEREFORE, Complainants respectfully request that the United States International Trade Commission:

A. Institute an immediate investigation pursuant to Section 337(b)(1) of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, into the violation by the Proposed Respondents of Section 337 arising from importation into the United States, imminent sale for importation, and/or imminent sale within the United States after importation of certain powered rocker-recliner and glider-recliner mechanisms and seating units that infringe the Asserted Patents;

B. Schedule and conduct a hearing pursuant to Section 337(c) for purposes of receiving evidence and hearing argument concerning whether there has been a violation of Section 337, and, following the hearing, to determine that there has been a violation of Section 337;

C. Issue permanent limited exclusion orders pursuant to Section 337(d) and (f)(1) directed to each Proposed Respondent excluding from entry into the United States infringing powered rocker-recliner and glider-recliner mechanisms and seating units incorporating the same manufactured by or on behalf of, or imported by or on behalf of, each of the Proposed Respondents;

D. Issue permanent cease-and-desist orders against each named Proposed Respondent under 19 U.S.C. § 1337(f), prohibiting the importing, selling, selling for importation, offering for sale, distribution, repairing, marketing, and/or any commercial activity relating to certain

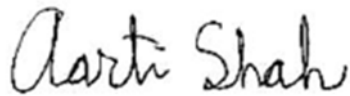
powered rocker-recliner and glider-recliner mechanisms and seating units that infringe the
Asserted Patents in the United States;

E. Impose a bond during the 60-day Presidential review period pursuant to 19 U.S.C.
§ 1337(e)(1) and (f)(1); and

F. Grant all such other and further relief as it deems appropriate under the law, based
upon the facts determined by the investigation and the authority of the Commission.

DATED: August 21, 2026

Respectfully submitted,



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